



Allocation Principles 2014

made under section 96-1 of the



Aged Care

Superannuation Contributions Tax (Assessment and Collection) Act 1997

No. 70, 1997

Compilation No. 724

Compilation date: 1 October 2022 ~~10 March 2016~~

Includes amendments up to: F2022L01276 ~~Act No. 4, 2016~~

Registered: 20 October 2022

Registered: 24 March 2016

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Allocation Principles 2014* that shows the text of the law as amended and in force on [1 October 2022](#)~~10 March 2016~~ (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1—Preliminary	1
1 Name of principles	1
3 Authority	1
4 Definitions	1
5 Meaning of <i>low-means care recipient</i>	2
6 Meaning of <i>representative</i>	3
Part 2—Planning the allocation of places	4
9 Purpose of this Division	4
10 Kinds of people in respect of whom Secretary may determine proportion of care	42
11 Criteria that must be considered in making determination	44
Part 4—The allocation process	50
Division 1—Invitations to apply for allocation of places	50
25 Purpose of this Division	50
26 Proportion of care for specified kinds of people	50
Division 2—Assessment of applications	51
27 Purpose of this Division	51
28 Competitive assessment of applications for allocations	51
29 Diversity of choice for care recipients	52
30 Continuity of care	53
31 Secretary may also consider other matters	53
Division 3—Conditions of allocation of places	54
33 Conditions of allocation—generally	54
Part 5—When allocations take effect	58
Division 1—When allocations take effect	58
35 Purpose of this Division	58
36 Matters to which Secretary must have regard	58
Division 2—Provisional allocation periods	59
37 Purpose of this Division	59
38 Matters to be considered	59
Part 6—Transfer of places other than provisionally allocated places	60
Division 1—Application of this Part	60
41 Application of this Part	60
Division 2—Transfer of places	61
42 Purpose of this Division	61
45 Matters to be considered in deciding whether to determine different notice period	62
46 Matters to be considered in determining different notice period	62
Division 3—Consideration of transfers	63
47 Purpose of this Division	63
48 Other matters that must be considered	63

Division 4—Other matters	65
49 Purpose of this Division	65
51 Information that may be given to transferee and time for giving information.....	65
52 Records to be given by transferor to transferee.....	66
Part 7—Transfer of provisionally allocated places	67
Division 1—Application of this Part	67
53 Application of this Part.....	67
Division 2—Transfer of provisionally allocated places	68
54 Purpose of this Division	68
55 Other information to be included in transfer notice	68
56 Matters to be considered in deciding whether to determine different notice period.....	69
57 Matters to be considered in determining different notice period	69
Division 3—Consideration of transfers	70
58 Purpose of this Division	70
59 Other matters that must be considered	70
Division 4—Other matters	72
60 Purpose of this Division	72
62 Information that may be given to transferee and time for giving information.....	72
Part 8—Variation of conditions for allocations of places	73
Division 1—Applications for variation of conditions	73
63 Purpose of this Division	73
64 Information that must be included in application.....	73
Division 2—Consideration of applications	75
65 Purpose of this Division	75
66 Other matters to be considered.....	75
Part 9—Allocations ceasing to have effect	77
Division 1—Relinquishing places in respect of residential care subsidy	77
67 Purpose of this Division	77
68 Matters that must be dealt with by proposals.....	77
69 Matters that Secretary must take into account in deciding if proposals are satisfactory.....	78
Division 3—Revocation of unused allocations of places	80
73 Purpose of this Division	80
73A Period after which allocation may be revoked—allocations in respect of flexible care subsidy for short-term restorative care	80
74 Matters that must be considered.....	80
Part 10—Application, saving and transitional provisions	82
75 Application of amendments made by the <i>Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019</i>	82
76 Application of amendments made by Schedule 3 to the <i>Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022</i>	82

<u>Endnotes</u>	83
<u>Endnote 1—About the endnotes</u>	83
<u>Endnote 2—Abbreviation key</u>	84
<u>Endnote 3—Legislation history</u>	85
<u>Endnote 4—Amendment history</u>	120
<u>Endnote 5—Editorial changes</u>	124

Part 1—Preliminary	1
1 Short title	1
2 Commencement	1
3 Act to bind Crown	1
4 Extension to Territories	1
5 Object of Act	1
6 Simplified outline of Act	2
Part 2—Liability to surcharge and advance instalments	4
7 Superannuation contributions surcharge	4
7A Adjusted taxable income—first case	5
7B Adjusted taxable income—second case	6
8 Surchargeable contributions	9
8A Holder of surchargeable contributions of a member	14
9 Surcharge threshold	16
10 Liability to pay surcharge	18
10A Payment splits or interest splits on marriage breakdown	19
11 Advance instalment of superannuation contributions surcharge	20
12 Liability to pay advance instalment	20
Part 3—Assessment and collection of surcharge and advance instalments	22
13 Superannuation providers to give statements	22
14 Giving of information in certain form	26
14A Commissioner may require member to provide information as to the holder of the member's surchargeable contributions	27
15 Assessment of liability to pay surcharge and determination of advance instalment	28
15A Self-assessing superannuation providers	31
15B Statement etc. by self-assessing superannuation provider	32
16 Deferment of liability for surcharge payable by superannuation (unfunded defined benefits) providers	34
17 Credit or refund of advance instalment	36
17A Periods within which assessments may be made	37
18 Amendment of assessment if tax file number quoted or found out after assessment	41
19 Amendment of assessments	41

20	Assessment of liability to additional surcharge	43
21	Payment of the general interest charge if liability increased by an amendment of an assessment	45
22	Payment of general interest charge if surcharge payable under a further assessment	46
23	Tax file numbers	46
24	Objections against assessments	47
Part 4—Recovery of unpaid surcharge, advance instalment, general interest charge or late payment penalty		49
25	Penalty for non-payment of surcharge or advance instalment	49
25A	Additional liability to pay general interest charge	50
Part 5—Administration		51
30	General administration of Act	51
31	Annual report	51
Part 6—Miscellaneous		52
33	No amount payable by Commonwealth under this Act	52
34	Act not to operate so as to contravene Constitution	52
34A	Exclusion of certain members	52
35	Information to be given to Commissioner by superannuation provider who pays surcharge or advance instalment	52
35B	Prohibition of avoidance schemes	53
35A	Contravention notices	53
40	Records to be kept and retained by superannuation provider	55
41	Application of the <i>Criminal Code</i>	56
42	Regulations	57
Part 7—Interpretation		58
43	Definitions	58
Endnotes		66
Endnote 1—About the endnotes		66
Endnote 2—Abbreviation key		68
Endnote 3—Legislation history		69
Endnote 4—Amendment history		75

~~An Act relating to the assessment and collection of superannuation contributions tax, and for related purposes~~

Part 1—Preliminary

1 Name of principles~~Short title~~

~~These principles are~~This Act may be cited as the *Allocation Principles 2014*.

3 Authority

~~These principles are made under section 96-1 of the *Aged Care Superannuation Contributions Tax (Assessment and Collection) Act 1997*.~~

4 2 Commencement

~~This Act commences on the day on which it receives the Royal Assent.~~

3 Definitions

Note: A number of expressions used in these principles are defined in the Act, including the following:

- (a) key personnel;
- (b) people with special needs;
- (c) region;
- (d) relinquish;
- (e) subsidy.

In these principles:

Act means the *Aged Care Act 1997*.

Aged Care Quality Standards means the Aged Care Quality Standards set out in the *Quality of Care Principles 2014*.

assisted resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.~~bind Crown~~

A residential care service is a **commencing service** if:

- (a) an approved provider has been allocated places, under Division 14 of the *Aged Care Act*, for the service; and
- (b) residential care has not previously been provided for those places through that service; and
- (c) the service is not an accredited service or a previously accredited service.

Section 5 ~~Section 43~~

Note: A change in the approved provider to which places are allocated for a residential care service, or a change in the location of a residential care service, does not make the service a commencing service.

concessional resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.

concessional resident supplement means the supplement referred to in section 44-6 of the *Aged Care (Transitional Provisions) Act 1997*.

flexible care agreement has the meaning given by section 4 of the *User Rights Principles 2014*.

government officer means an officer or employee —(1)— This Act binds the Crown in right of the Commonwealth, a State or of each of the States, of the Australian Capital Territory or a local government authority.

home care setting has the meaning given by section 4, of the *Subsidy Principles 2014*.

low-means care recipient has the meaning given by section 5.

representative, of a care recipient, has the meaning given by section 6.

residential care setting has the meaning given by section 4 of the *Subsidy Principles 2014*.

short-term restorative care has the meaning given by section 4 of the *Subsidy Principles 2014*.

STRC Programme has the meaning given by section 4 of the *Subsidy Principles 2014*.

supported resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.

5 Meaning of low-means care recipient

A care recipient is a *low-means care recipient* on a day if:

(a) the care recipient is being provided with residential care through a residential care service on that day; and

(b) either:

(i) the care recipient is eligible for accommodation supplement under section 44-28 of the Act for that day; or

(ii) on the day (the *entry day*) on which the care recipient entered the residential care service, the care recipient's means tested amount was less than the maximum accommodation supplement amount for the entry day.

~~Section 6~~**Section 43**

Note: *Maximum accommodation supplement amount* has the meaning given by subsection 44-21(6) of the Act.

6 Meaning of representative

- (1) In these principles, *representative*, of a care recipient, means:
- (a) a person nominated by the care recipient as a person to be told about matters affecting the care recipient; or
 - (b) a person:
 - (i) who nominates himself or herself as a person to be told about matters affecting a care recipient; and
 - (ii) who the relevant approved provider is satisfied has a connection with the care recipient, and is concerned for the safety, health and well-being of the care recipient.
- (2) Without limiting subparagraph (1)(b)(ii), a person has a connection with a care recipient if:
- (a) the person is a partner, close relation or other relative of the care recipient; or
 - (b) the person holds an enduring power of attorney given by the care recipient; or
 - (c) the person has been appointed by a State or ~~Northern Territory~~ guardianship board (however described) to deal with the care recipient's affairs; ~~or and of Norfolk Island.~~
 - (d) the person represents the care recipient in dealings with the approved provider.

Note: ~~(2) Nothing in this section is intended to affect the powers of a substitute decision-maker appointed for a person under a law of a State or Act permits the Crown to be prosecuted for an offence.~~

4 Extension to Territories

~~This Act extends to Norfolk Island, the Territory of Cocos (Keeling) Islands and the Territory of Christmas Island.~~

Part 2—Planning the allocation of places

9 Purpose of this Division

For 5 Object of Act

~~The object of this Act is to provide for the assessment and collection of the superannuation contributions surcharge payable on surchargeable contributions for high income individuals.~~

6 Simplified outline of Act

~~The following is a simplified outline of this Act:~~

- ~~(a) If there are surchargeable contributions for a member for the 1996-97 financial year or a later financial year (being a financial year that ends before 1 July 2005), the Commissioner will calculate the member's adjusted taxable income for the financial year.~~
- ~~(b) If the amount calculated is greater than the surcharge threshold amount, the Commissioner will calculate the rate of surcharge and the amount of the surcharge payable on the surchargeable contributions. Only surchargeable contributions calculated for a period after 7.30 pm on 20 August 1996 are subject to surcharge.~~
- ~~(c) For a defined benefits superannuation scheme, the surcharge is payable on an amount calculated to be the actuarial value of the benefits that accrued to, and the value of the administration expenses and risk benefits provided in respect of, the member for the financial year.~~
- ~~(d) If surcharge is payable for a member for a financial year under an assessment made before 23 March 1999, an advance instalment of one half of the surcharge is payable on account of surcharge payable for the member for the next financial year. However, no instalment is payable if the contributions for the next financial year are held under an unfunded defined benefits superannuation scheme.~~
- ~~(e) If, after the assessment of surcharge, the member's adjusted taxable income is found to be different from the amount that was previously calculated or the surchargeable contributions are found to be different from the amount on which the assessment was based:~~

Section 6~~Section 43~~

- ~~(i) if the person who was liable to pay the assessed surcharge is still the holder of the contributions—the Commissioner may amend the assessment; or~~
- ~~(ii) otherwise—the Commissioner may make a further assessment of surcharge.~~
- ~~(f) The holder of a member’s surchargeable contributions for a financial year is liable to pay:~~
 - ~~(i) the surcharge on those contributions; and~~
 - ~~(ii) if the liability to pay the surcharge arose under an assessment made before 23 March 1999—any advance instalment on the member’s surchargeable contributions for the next financial year;~~
- ~~within prescribed periods.~~
- ~~(g) However, if the holder is a superannuation (unfunded defined benefits) provider, the surcharge is not payable until benefits become payable.~~
- ~~(h) If liability for surcharge is increased as a result of an amendment of an assessment or the making of a further assessment, interest is payable on the additional surcharge.~~
- ~~(i) Either a superannuation provider or a member may object against an assessment of surcharge in the way set out in Part IVC of the *Taxation Administration Act 1953* for objecting against assessments of income tax.~~
- ~~(j) A late payment penalty applies if surcharge or an advance instalment is not paid on time.~~

Section 7 ~~Section 43~~

Part 2—Liability to surcharge and advance instalments

7—Superannuation contributions surcharge

Financial years to which surcharge applies

- (1) Superannuation contributions surcharge is payable on a member's surchargeable contributions for the financial year that began on 1 July 1996 or a later financial year that ends before 1 July 2005.

No surcharge is payable unless adjusted taxable income is greater than surcharge threshold

- (2) Surcharge is not payable for a financial year unless the member's adjusted taxable income for the financial year is greater than the surcharge threshold for the financial year.

No surcharge is payable by residents of external Territories

- (3) Surcharge is not payable for a financial year if the person who would be liable to pay the surcharge is the trustee of a Territory trust, a Territory company or a Territory resident for the purposes of Division 1A of Part III of the Income Tax Assessment Act as it applies to the year of income that comprises that financial year.

Note: — In certain other circumstances surcharge is not payable (see subsection 10(4)).

No surcharge is payable if surcharge is payable under another Act

- (4) Surcharge is not payable on a member's surchargeable contributions if surcharge is payable on those contributions under the *Superannuation Contributions Tax (Constitutionally Protected Superannuation Funds) Assessment and Collection Act 1997*.

7A—Adjusted taxable income—first case

- (1) This section 12-5 of the Act, this applies to a member for a financial year if:
- (a) no payments that were eligible termination payments for the purposes of Subdivision AA of Division 2 of Part III of the Income Tax Assessment Act because of paragraph (a) of the definition of **eligible termination payment** in subsection 27A(1) of that Act were made to or for the member in the financial year; or
- (b) one or more such payments were so made but the total of the reduced amounts of the payments (other than payments that were rolled over before 1 July 1997) was equal to or greater than the amount specified in

Section 7B~~Section 43~~

subsection 5(2) of the *Superannuation Contributions Tax Imposition Act 1997* as altered under section 7 of that Act for the financial year.

- ~~———— (2) The **reduced amount** of an eligible termination payment is the amount (if any) remaining after deducting from the amount of the payment the amount of any post June 1994 invalidity component or CGT exempt component of the payment or any part of the payment that was made from an employee share acquisition scheme.~~
- ~~———— (3) The adjusted taxable income of the member for the financial year is the sum of:~~
- ~~———— (a) the member's taxable income of the year of income comprising the financial year less any amounts included in the member's assessable income of that year of income:~~
- ~~———— (i) that were eligible termination payments for the purposes of Subdivision AA of Division 2 of Part III of the Income Tax Assessment Act (other than amounts that were such payments because of paragraph (a) of the definition of **eligible termination payment** in subsection 27A(1) of that Act); or~~
- ~~———— (ii) that were so included under section 26AC or under subsection 26AD(2), (3) or (4) of the Income Tax Assessment Act in respect of a bona fide redundancy amount, an early retirement scheme amount or an invalidity amount as defined in section 159S of that Act; and~~
- ~~———— (b) in respect of the financial year beginning on 1 July 1996 or the following financial year—the amount (if any) by which the amount worked out under paragraph (a) would be increased if it were instead worked out ignoring subsection 271–105(1) in Schedule 2F to the Income Tax Assessment Act; and~~
- ~~———— (c) in respect of the financial year beginning on 1 July 1998 or a later financial year—the amount (if any) by which the amount worked out under paragraph (a) would be increased if it were instead worked out ignoring paragraphs 102UK(2)(b) and 102UM(2)(b) of, and subsection 271–105(1) in Schedule 2F to, the Income Tax Assessment Act; and~~
- ~~———— (d) the member's surchargeable contributions for the financial year, worked out ignoring subsection 8(8) of this Act and subsection 9(9) of the *Superannuation Contributions Tax (Members of Constitutionally Protected Superannuation Funds) Assessment and Collection Act 1997*; and~~
- ~~———— (e) in respect of a financial year beginning on or after 1 July 1999—if the member is an employee (within the meaning of the *Fringe Benefits Tax Assessment Act 1986*) who has a reportable fringe benefits total (as defined in that Act) for the year of income comprising the financial year—the reportable fringe benefits total for the year of income.~~

7B Adjusted taxable income—second case

- ~~———— (1) This section applies to a member for a financial year if:~~

Section 7BSection 43

- ~~————— (a) one or more payments that were eligible termination payments for the purposes of Subdivision AA of Division 2 of Part III of the Income Tax Assessment Act because of paragraph (a) of the definition of *eligible termination payment* in subsection 27A(1) of that Act were made to or for the member in the financial year; and~~
- ~~————— (b) the total of the reduced amounts of the payments (other than payments that were rolled over before 1 July 1997) was less than the amount specified in subsection 5(2) of the *Superannuation Contributions Tax Imposition Act 1997* as altered under section 7 of that Act for the financial year.~~
- ~~————— (2) The *reduced amount* of an eligible termination payment is the amount (if any) remaining after deducting from the amount of the payment the amount of any post June 1994 invalidity component or CGT exempt component of the payment or any part of the payment that was made from an employee share acquisition scheme.~~
- ~~————— (3) The adjusted taxable income of the member for the financial year is the sum of:~~
 - ~~————— (a) the member's taxable income of the year of income comprising the financial year less any of the following amounts included in the member's assessable income of that year of income:~~
 - ~~————— (i) amounts that were eligible termination payments for the purposes of Subdivision AA of Division 2 of Part III of the Income Tax Assessment Act;~~
 - ~~————— (ii) amounts that were so included under section 26AC or under subsection 26AD(2), (3) or (4) of the Income Tax Assessment Act in respect of a bona fide redundancy amount, an early retirement scheme amount or an invalidity amount as defined in section 159S of that Act; and~~
 - ~~————— (b) in respect of the financial year beginning on 1 July 1996 or the following financial year—the amount (if any) by which the amount worked out under paragraph (a) would be increased if it were instead worked out ignoring subsection 271-105(1) in Schedule 2F to the Income Tax Assessment Act; and~~
 - ~~————— (c) in respect of the financial year beginning on 1 July 1998 or a later financial year—the amount (if any) by which the amount worked out under paragraph (a) would be increased if it were instead worked out ignoring paragraphs 102UK(2)(b) and 102UM(2)(b) of, and subsection 271-105(1) in Schedule 2F to, the Income Tax Assessment Act; and~~
 - ~~————— (d) in respect of each eligible termination payment referred to in subsection (1)—whichever of the following amounts is appropriate:~~
 - ~~————— (i) if the post 20 August 1996 period is less than 365 days—the amount (excluding any cents, cent or fraction of a cent included in that amount) worked out using the formula:~~

Section **8** ~~Section 43~~

$$\frac{\text{Post-20 August 1996 period}}{\text{Total period}} \times \text{ETP}$$

- (ii) ~~otherwise the amount (excluding any cents, cent or fraction of a cent included in that amount) worked out using the formula:~~

$$\frac{365}{\text{Total period}} \times \text{ETP}$$

~~where:~~

~~**ETP** means:~~

- (a) ~~if no part of the payment was rolled over so much of the amount of the payment as is included in the member's taxable income of the year of income comprising the financial year; or~~

- (b) ~~if any of the payment was rolled over the sum of:~~

- (i) ~~so much of the part (if any) of the payment that was not rolled over as is included in the member's taxable income of the year of income comprising the financial year; and~~

- (ii) ~~so much of the part of the payment that was rolled over after 30 June 1997 as would have been included in that taxable income if that part of the payment had not been rolled over.~~

~~**post-20 August 1996 period** means the number of days in the period of the member's employment for which the eligible termination payment was made that occurred after 20 August 1996.~~

~~**total period** means the number of days in the period of the member's employment for which the eligible termination payment was made; and~~

- (c) ~~the member's surchargeable contributions for the financial year, worked out ignoring subsection 8(8) of this Act and subsection 9(9) of the *Superannuation Contributions Tax (Members of Constitutionally Protected Superannuation Funds) Assessment and Collection Act 1997*, less any amounts included in those surchargeable contributions because of subparagraph 8(2)(c)(iii); and~~

- (f) ~~in respect of a financial year beginning on or after 1 July 1999 if the member is an employee (within the meaning of the *Fringe Benefits Tax Assessment Act 1986*) who has a reportable fringe benefits total (as defined in that Act) for the year of income comprising the financial year the reportable fringe benefits total for the year of income.~~

8 ~~Surchargeable contributions~~

Application

- (1) ~~This section explains what are the surchargeable contributions of a member for a financial year and how they are to be worked out.~~

Section 8 ~~Section 43~~

Member other than a member of a defined benefits superannuation scheme

- ~~(2) If:~~
- ~~(a) there are any contributed amounts for a financial year in relation to a member other than a member of a defined benefits superannuation scheme; and~~
 - ~~(b) where the relevant superannuation provider is the trustee of a superannuation fund or of an approved deposit fund—the superannuation fund is a complying superannuation fund or the approved deposit fund is a complying approved deposit fund, as the case may be, for the purposes of the year of income comprising the financial year;~~
~~the surchargeable contributions of the member for the financial year are the sum of:~~
 - ~~(c) so much of the amounts referred to in subparagraph (a)(i) of the definition of contributed amounts in section 43 as:~~
 - ~~(i) are taxable contributions under subparagraph 274(1)(a)(i), (b)(ii), (ba)(i) or (ba)(iv) or paragraph 274(1)(d) or (e) of the Income Tax Assessment Act; or~~
 - ~~(ii) are allowed as deductions to the member under section 82AAT of that Act; or~~
 - ~~(iii) subject to subsection (2A), constitute amounts accrued after 20 August 1996 that are eligible termination payments under paragraph (a) of the definition of eligible termination payment in subsection 27A(1) of that Act and are rolled over on or after 1 July 1997; and~~
 - ~~(d) any amounts referred to in subparagraph (a)(ii) or (iii) of the definition of contributed amounts in section 43.~~
- ~~(2A) If an eligible termination payment within the meaning of subparagraph (2)(c)(iii) has been made or is made to or for a taxpayer after 20 August 1996, surcharge is payable only on the part of the reduced amount of the eligible termination payment that is worked out using the formula:~~

$$\frac{\text{Post-20 August 1996 period}}{\text{Total period}} \times \text{Eligible termination payment}$$

~~where:~~

~~*post-20 August 1996 period* means the number of days in the period of the taxpayer's employment for which the eligible termination payment was made that occurred after 20 August 1996.~~

~~*reduced amount* of an eligible termination payment is the amount remaining after deducting from the amount of the payment any post June 1994 invalidity component or CGT exempt component of the payment or any part of the payment that was made from an employee share acquisition scheme.~~

Section 8 ~~Section 43~~

~~*total period* means the number of days in the period of the taxpayer's employment for which the eligible termination payment was made.~~

~~*Member of defined benefits superannuation scheme*~~

- ~~———— (3) The *surchargeable contributions* for a financial year of a member of a defined benefits superannuation scheme are the amounts that constitute the actuarial value of the benefits that accrued to, and the value of the administration expenses and risk benefits provided in respect of, the member for the financial year.~~

~~*Value of benefits and expenses—financial year earlier than 1999–2000 financial year*~~

- ~~———— (4) The *actuarial value of the benefits that accrued to, and the value of the administration expenses and risk benefits provided in respect of*, a member of a defined benefits superannuation scheme for the 1996–97 financial year or for either of the next 2 financial years is the amount worked out using the formula:~~

$$\frac{\text{Annual salary} \times \text{Notional surchargeable contributions factor}}{\text{—————}}$$

~~where:~~

~~*annual salary* means:~~

- ~~———— (a) if paragraph (b) does not apply—the amount that is the member's annual salary for the financial year; or~~
~~———— (b) if another amount is taken to be the member's annual salary for the purposes of the scheme as it applies to the member for the financial year—that other amount.~~

~~*notional surchargeable contributions factor* means the factor applying to the member for the financial year worked out by an eligible actuary in accordance with:~~

- ~~———— (a) the method set out in Superannuation Contributions Ruling SCR 97/1; or~~
~~———— (b) if the Commissioner approves in writing another method as being appropriate in relation to the member for the financial year, being a method that excludes contributions made by the member for which the member is not entitled to an income tax deduction under the Income Tax Assessment Act or under the *Income Tax Assessment Act 1997*—the method so approved.~~

~~*Value of benefits and expenses—1999–2000 financial year or a later financial year*~~

- ~~———— (5) The *actuarial value of the benefits that accrued to, and the value of the administration expenses and risk benefits provided in respect of*, a member of a defined benefits superannuation scheme for the 1999–2000 financial year or a later financial year is an amount worked out using:~~

Section 8 ~~Section 43~~

- ~~———— (a) the method set out in the regulations, being a method that excludes Government co-contributions made under the *Superannuation (Government Co-contribution for Low Income Earners) Act 2003* and contributions made by the member for which the member is not entitled to an income tax deduction under the *Income Tax Assessment Act* or under the *Income Tax Assessment Act 1997*; or~~
- ~~———— (b) if the Commissioner approves in writing another method as being appropriate in relation to the member for the financial year, being a method that excludes Government co-contributions made under the *Superannuation (Government Co-contribution for Low Income Earners) Act 2003* and contributions made by the member for which the member is not entitled to an income tax deduction under the *Income Tax Assessment Act* or under the *Income Tax Assessment Act 1997*—the method so approved.~~

Regulations

- ~~———— (6) Regulations made for the purposes of paragraph (5)(a) may specify, or make provision for the Commissioner to specify in writing, different methods in relation to different superannuation schemes, different classes of superannuation schemes or different classes of members of a superannuation scheme.~~

Transitional provision for 1996-97 financial year

- ~~———— (7) For the 1996-97 financial year, a member's surchargeable contributions are to be worked out only for the part of that financial year that started immediately after 7.30 pm by legal time in the Australian Capital Territory on 20 August 1996.~~

Reduced surchargeable contributions

- ~~———— (8) The amount of the **surchargeable contributions** of a member for a financial year is the amount worked out under subsection (2) or (3) (as appropriate), reduced by the amount worked out under subsection (9), if:~~
- ~~———— (a) an eligible termination payment is made to the member in the financial year from the superannuation fund, approved deposit fund or RSA; and~~
- ~~———— (b) the eligible termination payment has an excessive component.~~

Section 8A~~Section 43~~

~~(9) The amount of the reduction is worked out as follows:~~

Amount of the reduction

~~Step 1. Work out the amount that would have been the taxed element of the retained amount of the post-June 83 component of the eligible termination payment if the amount of the excessive component of the eligible termination payment had been nil.~~

~~Step 2. Work out the taxed element of the retained amount of the post-June 83 component of the eligible termination payment.~~

~~Step 3. Subtract the result of step 2 from the result of step 1.~~

~~Step 4. Divide the result of step 3 by 0.85.~~

~~Step 5. Subtract the result of step 3 from the result of step 4.~~

~~Step 6. Add the result of step 5 to the excessive component of the eligible termination payment.~~

~~Step 7. Identify the amount of the surchargeable contributions (apart from subsection (8)) of the member reported for the financial year by the entity that paid the eligible termination payment.~~

~~Step 8. Identify the lesser of the results of steps 6 and 7 (or either result if they are the same).~~

8A Holder of surchargeable contributions of a member

Application

~~(1) This section explains who is to be regarded as the holder of the surchargeable contributions of a member for a particular financial year in respect of which surcharge is payable on those contributions.~~

~~Where there are contributed amounts and no payment of benefit has been made~~

~~(1A) This section is subject to section 10A.~~

~~(2) Subject to subsection (3), if:~~

~~(a) there were any contributed amounts in respect of a member for a financial year; and~~

~~(b) a lump sum has not been paid, and a pension or annuity has not begun to be paid, to or in respect of the member by the relevant superannuation provider;~~

Section 9 ~~Section 43~~

a reference in this Act to the **holder** of the surchargeable contributions of the member for the financial year is a reference to:

- ~~———— (c) if only one superannuation provider holds the contributed amounts referred to in paragraph (a) at the time when an assessment is made of the surcharge payable on the surchargeable contributions of the member for the financial year—that superannuation provider; or~~
- ~~———— (d) otherwise—each superannuation provider who holds any of those contributed amounts at that time, to the extent to which the surchargeable contributions of the member for the financial year are included in the contributed amounts held by that provider.~~

What happens if member dies

- ~~———— (3) If:~~
- ~~———— (a) a superannuation provider would, apart from this subsection, be taken under subsection (2) to be the holder of surchargeable contributions of a member for the financial year; and~~
- ~~———— (b) the member died in the financial year;~~
~~subsection (2) does not apply in relation to the member in respect of the financial year and later financial years.~~

Where there are contributed amounts and a payment of benefit has been made

- ~~———— (4) If there were any contributed amounts in respect of a member for a financial year:~~
- ~~———— (a) that have been paid to a person other than a superannuation provider; or~~
- ~~———— (b) in respect of which a pension or annuity has begun to be paid;~~
~~a reference in this Act to the **holder** of the surchargeable contributions of the member for the financial year is a reference to the person to whom the amounts were paid or the pension or annuity has begun to be paid, as the case may be.~~

9 Surcharge threshold

Surcharge threshold for 1996-97 financial year

- ~~———— (1) The **surcharge threshold** for the 1996-97 financial year is \$70,000.~~

Surcharge threshold for later financial year

- ~~———— (2) The **surcharge threshold** for a later financial year is the amount calculated using the formula:~~

~~$$\frac{\text{Previous surcharge threshold}}{\text{Indexation factor}}$$~~

~~where:~~

Section 9 ~~Section 43~~

~~*previous surcharge threshold*~~ means the surcharge threshold for the financial year immediately before the financial year for which the surcharge threshold is being calculated.

~~*indexation factor*~~ means the number calculated under subsections (4) and (5) for the financial year for which the surcharge threshold is being calculated.

~~*Rounding off of amount of surcharge threshold*~~

- ~~———— (3) If an amount worked out for the purposes of subsection (2) is an amount of dollars and cents:~~
- ~~———— (a) if the number of cents is less than 50 — the amount is to be rounded down to the nearest whole dollar; or~~
- ~~———— (b) otherwise — the amount is to be rounded up to the nearest whole dollar.~~

~~*Indexation factor*~~

- ~~———— (4) The *indexation factor* for a financial year is the number calculated, to 3 decimal places, using the formula:~~

$$\frac{\text{Index number for last quarter in current March year}}{\text{Index number for last quarter in previous March year}}$$

~~where:~~

~~*index number*, for a quarter, means the estimate of full-time adult average weekly ordinary time earnings for the middle month of the quarter published by the Australian Statistician.~~

~~*current March year* means the period of 12 months ending on 31 March immediately before the financial year for which the surcharge threshold is being calculated.~~

~~*previous March year* means the period of 12 months immediately before the current March year.~~

~~*Rounding up of indexation factor*~~

- ~~———— (5) If the number calculated under subsection (4) for a financial year would, if it were worked out to 4 decimal places, end with a number greater than 4, the number so calculated is increased by 0.001.~~

~~*Change in index numbers*~~

- ~~———— (6) If at any time, whether before or after the commencement of this Act, the Australian Statistician has published or publishes an index number for a quarter in substitution for an index number previously published for the quarter, the publication of the later index number is to be disregarded.~~

Section 10 ~~Section 43~~

Surcharge threshold to be published

- ~~———— (7) The Commissioner must publish before, or as soon as practicable after, the start of the 1997-98 financial year, and before the start of each later financial year (being a financial year that ends before 1 July 2005), the surcharge threshold for the financial year.~~

~~Note: ——— For the purposes of this section, *Australian Statistician* means the Australian Statistician referred to in subsection 5(2) of the *Australian Bureau of Statistics Act 1975*.~~

10 Liability to pay surcharge

Application

- ~~———— (1) This section identifies the person liable to pay the superannuation contributions surcharge on a member's surchargeable contributions for a financial year.~~

- ~~———— (1A) This section is subject to section 10A.~~

Superannuation provider who holds surchargeable contributions liable to pay surcharge

- ~~———— (2) If a superannuation provider is the holder of the surchargeable contributions when an assessment of the surcharge on those contributions is made, the provider is liable to pay the surcharge.~~

Superannuation provider ceasing to be the holder of the contributions, or starting to pay pension or annuity, before receiving copy of assessment

- ~~———— (3) However, subsection (2) does not apply to a superannuation provider that ceases to be the holder of the contributions, or begins to pay a pension or annuity based on the contributions, before a notice of the assessment is given to it.~~

Contributions withdrawn or pension or annuity starts to be paid

- ~~———— (4) If:~~
- ~~———— (a) the contributions have been paid to a person other than a superannuation provider or a pension or annuity based on the contributions has begun to be paid; and~~
- ~~———— (b) no superannuation provider is liable under subsection (2) to pay the surcharge;~~
- ~~the following paragraphs have effect:~~
- ~~———— (c) if the surchargeable contributions were paid, or the pension or annuity began to be paid, to the member — the member is liable to pay the surcharge; or~~
-

Section 10A ~~Section 43~~

- ~~— (ca) if the surchargeable contributions were paid, or the pension or annuity began to be paid, to a person other than the member—the other person is liable to pay the surcharge; or~~
- ~~— (d) otherwise—the surcharge is not payable.~~

10A Payment splits or interest splits on marriage breakdown

Liability to pay surcharge

- ~~— (1) If:~~
 - ~~— (a) in respect of an interest (the **original interest**) that a person has as a member:~~
 - ~~— (i) a payment split applies to a splittable payment; or~~
 - ~~— (ii) an interest in a superannuation fund, an approved deposit fund or an RSA is created for the non-member spouse in relation to the original interest in circumstances prescribed by the regulations; or~~
 - ~~— (iii) an amount is transferred to a superannuation fund, an approved deposit fund or an RSA, in circumstances prescribed by the regulations, for the benefit of the non-member spouse in relation to the original interest; and~~
 - ~~— (b) an assessment is then made that surcharge is payable on the surchargeable contributions of the member in respect of the original interest;~~
- ~~then:~~
 - ~~— (c) if a superannuation provider holds those contributions for the member—the provider is taken to be the **holder** of those contributions and liable to pay the surcharge; or~~
 - ~~— (d) otherwise—the member is taken to be the **holder** of those contributions and liable to pay the surcharge.~~

- ~~— (2) In this section:~~

~~**non-member spouse** has the same meaning as in Part VIIIB of the *Family Law Act 1975*.~~

~~**payment split** means a payment split under Part VIIIB of the *Family Law Act 1975*.~~

~~**splittable payment** has the same meaning as in Part VIIIB of the *Family Law Act 1975*.~~

11 Advance instalment of superannuation contributions surcharge

- ~~— If superannuation contributions surcharge is payable for a member for a financial year under an assessment made before 23 March 1999, an advance instalment of one-half of the amount of the surcharge is payable on account of surcharge payable for the member for the following financial year.~~

Section 12 ~~Section 43~~

~~Note: In certain circumstances an advance instalment is not payable (see subsections 12(2) and (3)).~~

12 Liability to pay advance instalment

Application

- ~~(1) This section identifies the person liable to pay the advance instalment of superannuation contributions surcharge on a member's surchargeable contributions for a financial year and sets out circumstances when no instalment is payable.~~

~~Contributions withdrawn or pension or annuity begins to be paid before 15 June in financial year~~

- ~~(2) If, before 15 June in the financial year, the contributions were paid to a person other than a superannuation provider or a pension or annuity based on the contributions began to be paid, the advance instalment is not payable.~~

~~Contributions held on 15 June in financial year by superannuation (unfunded defined benefits) provider~~

- ~~(3) If, on 15 June in the financial year, a superannuation (unfunded defined benefits) provider is the holder of the contributions, the advance instalment is not payable.~~

~~Contributions held on 15 June in financial year by any other superannuation provider~~

- ~~(4) If, on 15 June in the financial year, a superannuation provider other than a superannuation (unfunded defined benefits) provider is the holder of the contributions, the superannuation provider who was liable to pay the surcharge on the member's surchargeable contributions for the preceding financial year is liable to pay the advance instalment.~~

Part 3 ~~Assessment and collection of surcharge and advance instalments~~

13 ~~Superannuation providers to give statements~~

~~Application~~

~~(1) This section applies in respect of every member.~~

~~Superannuation provider to give statement to Commissioner at end of financial year~~

~~(2) Each superannuation provider other than a self-assessing superannuation provider must, after the end of each financial year (being a financial year that ends before 1 July 2005) but not later than the notification date for the financial year or such later date (if any) as the Commissioner allows, give the Commissioner, in respect of each member in relation to whom the provider was a superannuation provider at the end of the financial year, a statement setting out:~~

- ~~(a) the member's name, the address of the member's place of residence or place of business or employment, the date of the member's birth and, if given to the provider in connection with the operation or the possible future operation of this Act, the member's tax file number; and~~
- ~~(b) the particulars referred to in subsection (7); and~~
- ~~(c) any other matters required by the regulations.~~

~~Superannuation provider that pays out contributed amounts to the member~~

~~(3) If, after 7.30 pm by legal time in the Australian Capital Territory on 20 August 1996 and before 1 July 2005, any of the contributed amounts in relation to the member were or are paid by a superannuation provider to the member, the provider must, not later than the notification date for the financial year in which the payment was or is made or such later date (if any) as the Commissioner allows, give the Commissioner a statement setting out:~~

- ~~(a) the member's name, the address of the member's place of residence or place of business or employment, the date of the member's birth and, if given to the provider in connection with the operation or the possible future operation of this Act, the member's tax file number; and~~
- ~~(b) the particulars referred to in subsection (7); and~~
- ~~(c) the date of the payment; and~~
- ~~(d) any other matters required by the regulations.~~

~~Statements to be given by superannuation provider that transfers contributed amounts to another superannuation provider~~

Section 13 ~~Section 43~~

- ~~(4) If, after 7.30 pm by legal time in the Australian Capital Territory on 20 August 1996 and before 1 July 2005, any of the contributed amounts were or are transferred by a superannuation provider to another superannuation provider, the provider that transferred the amounts must:~~
- ~~(a) if the amounts were or are transferred in the 1996-97 financial year or the 1997-1998 financial year—give the Commissioner, not later than the notification date for the financial year in which the amounts were or are transferred or such later date (if any) as the Commissioner allows, a statement setting out:~~
- ~~(ia) the name and address of the other provider; and~~
- ~~(i) the member's name, the address of the member's place of residence or place of business or employment, the date of the member's birth and, if given to the provider in connection with the operation or the possible future operation of this Act, the member's tax file number; and~~
- ~~(ii) the particulars referred to in subsection (7); and~~
- ~~(iii) any other matters required by the regulations; or~~
- ~~(b) if the amounts were or are transferred in a later financial year—give the other provider, within 30 days after the day on which the amounts were or are transferred, a statement setting out the particulars referred to in subsection (7) and any other matters required by the regulations.~~

Statement to be given by superannuation provider to which contributed amounts have been transferred

- ~~(4A) If, after 7.30 pm by legal time in the Australian Capital Territory on 20 August 1996 and before 1 July 2005, any of the contributed amounts were or are transferred by a superannuation provider to another superannuation provider, the other provider must give to the provider:~~
- ~~(a) if the amounts were or are transferred in the 1996-97 financial year or the 1997-98 financial year—not later than the notification date for the financial year in which the amounts were or are transferred; or~~
- ~~(b) if the amounts were or are transferred in a later financial year—within 30 days after the day on which the amounts were or are transferred;~~
- ~~a statement setting out any matters required by the regulations.~~

Information to be given to member

- ~~(5) A superannuation provider who is required to give a statement to the Commissioner under this section for a financial year earlier than the 1998-99 financial year must, not later than 12 months after the statement is given, give to the member the particulars referred to in subsection (7) that are required to be included in the statement.~~

Section 13~~Section 43~~

Member may request provider to give particulars

- ~~—— (5A) If a member requests a superannuation provider who has given a statement to the Commissioner under this section for the 1998–99 financial year or a later financial year to give to the member the particulars referred to in subsection (7) relating to the member that are included in the statement (other than particulars that the provider has previously given to the member), the provider must comply with the request within 30 days after receiving it.~~

How particulars are to be given

- ~~—— (5B) The particulars to be given to a member under subsection (5A) are to be given:~~
~~—— (a) if the request asked for them to be given in writing in writing; or~~
~~—— (b) otherwise in such manner as the superannuation provider considers appropriate.~~

Offences

- ~~—— (6) A superannuation provider who contravenes this section commits an offence punishable on conviction by a fine of not more than 60 penalty units.~~

~~Note 1: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.~~

~~Note 2: The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.~~

Particulars to be included in statements

- ~~—— (7) The particulars that are required to be given in a statement under this section are the total of the contributed amounts (if any) in relation to the member for the financial year or the total of the part of those amounts that has been transferred, as the case may be, and:~~
~~—— (a) if the statement is given by a superannuation (accumulated benefits) provider:~~
~~—— (i) if any of those amounts are amounts referred to in subparagraph (a)(i) of the definition of **contributed amounts** in section 43 the total of so much of those amounts as are taxable contributions referred to in subparagraph 8(2)(c)(i); and~~
~~—— (ii) the total of any of those amounts that are amounts referred to in subparagraph (a)(ii) or (iii) of that definition; and~~
~~—— (b) if the statement is given by a superannuation (defined benefits) provider the amount of the surchargeable contributions of the member for the financial year.~~

Section_14~~Section 43~~

14 Giving of information in certain form

Notice stating how information to be given

- (1) The Commissioner may, by notice published in the *Gazette*, set out the way in which information to be contained in a statement under section 13 is to be given.

Date of effect of notice

- (2) The notice has effect on and after the day stated in the notice.

Superannuation provider to comply with notice

- (3) If any of the information that a superannuation provider is required to give under section 13 is kept by or on behalf of the provider by a data processing device, the provider must give the information in a way set out in the notice.

Offences

- (4) A person who contravenes this section commits an offence punishable on conviction by a fine of not more than 60 penalty units.

Note 1: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

Note 2: The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.

Exemption

- (5) The Commissioner may, by legislative instrument, exempt a superannuation provider from subsection (3).

Burden of proof about exemption

- (6) In a prosecution for an offence against subsection (4), the burden of proving that an exemption is not in force under subsection (5) is on the prosecution.

14A Commissioner may require member to provide information as to the holder of the member's surchargeable contributions

- (1) The Commissioner may, at any time and from time to time, by written notice served on a member, require the member to give the Commissioner, within a period stated in the notice (being a period of not less than 21 days from the date of service of the notice), a statement setting out:

Section 15~~Section 43~~

- ~~———— (a) the name and address of any person who is the holder of surchargeable contributions of the member for a financial year that ends before 1 July 2005; and~~
- ~~———— (b) any other matters required by the regulations.~~
- ~~———— (2) A person on whom such a notice is served must not fail to comply with the notice.~~

~~Penalty: 50 penalty units.~~

~~Note 1: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.~~

~~Note 2: The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.~~

15 Assessment of liability to pay surcharge and determination of advance instalment

Commissioner to assess surcharge

- ~~———— (1) For each financial year (being a financial year that ends before 1 July 2005) for which there are surchargeable contributions for a member, the Commissioner must make an assessment that:~~
 - ~~———— (a) calculates the member's adjusted taxable income; and~~
 - ~~———— (b) if the adjusted taxable income is greater than the surcharge threshold:~~
 - ~~———— (i) calculates the surchargeable contributions; and~~
 - ~~———— (ii) calculates the rate of surcharge that applies to the member; and~~
 - ~~———— (iii) specifies: the amount of the surcharge payable or, if no surcharge is payable, states that a nil amount of surcharge is payable; and~~
 - ~~(a) e) — if the kindsadjusted taxable income is equal to or less than the surcharge threshold — states that a nil amount of people surcharge is payable.~~

Commissioner to determine advance instalment in certain cases

- ~~———— (2) If, under an assessment of superannuation contributions surcharge for a financial year made before 23 March 1999, an amount (other than a nil amount) of surcharge is payable, the Commissioner must make a determination specifying:~~
 - ~~———— (a) the amount of the member's surchargeable contributions for that financial year; and~~
 - ~~———— (b) the amount of the advance instalment payable in respect of the surcharge on the member's surchargeable contributions for the next financial year; and~~
 - ~~———— (c) the day by which the instalment is payable.~~

Section 15 ~~Section 43~~

~~When surcharge is payable~~

- ~~—— (3) Unless section 16 applies, surcharge assessed under subsection (1) is payable within 1 month after the day on which the assessment is made.~~

~~When advance instalment is payable~~

- ~~—— (4) An advance instalment determined under subsection (2) of surcharge for a financial year is payable not later than 15 June in that financial year.~~

~~Note: For provisions about collection and recovery of superannuation contributions surcharge and other related amounts, see Part 4 15 in Schedule 1 to the *Taxation Administration Act 1953*.~~

~~Assessment taken not to have been made~~

- ~~—— (5) An assessment of surcharge on a member's surchargeable contributions is taken not to have been made if:~~
- ~~—— (a) after the assessment was made the superannuation provider who held the contributions ceased to hold the contributions or began to pay a pension or annuity based on the contributions; and~~
- ~~—— (b) notice of the assessment was not given to the provider before it ceased to hold the contributions or began to pay the pension or annuity.~~

~~Determination taken not to have been made~~

- ~~—— (6) A determination of an advance instalment of surcharge on a member's surchargeable contributions for a financial year is taken not to have been made if the superannuation provider who would, apart from this subsection, be liable to pay the instalment is not liable because of subsection (5) to pay the surcharge on the member's surchargeable contributions for the preceding financial year.~~

~~What happens if member dies~~

- ~~—— (7) If:~~
- ~~—— (a) a member has died, whether before or after the commencement of this subsection; and~~
- ~~—— (b) after the death an assessment was or is made of surcharge on the member's surchargeable contributions for the financial year in which the member died or a later financial year;~~
- ~~the assessment is taken not to have been made.~~

~~Notice of assessment or determination~~

- ~~—— (8) When an assessment (including an amended assessment) or a determination is made, the Commissioner must, subject to subsection (9):~~
- ~~—— (a) give notice of the assessment or determination to the person who is liable to pay the surcharge or instalment, as the case may be, being a notice~~

Section 15A~~Section 43~~

~~stating that the person is liable to pay the surcharge or instalment and specifying the day by which it is required to be paid; and~~

- ~~(b) if that person is the superannuation provider also give notice of the assessment or determination to the member.~~

No notice if nil amount assessed

- ~~(9) The Commissioner is not required under subsection (8) to give a notice of an assessment if the assessment states that a nil amount of surcharge is payable.~~

Particulars in notice of assessment

- ~~(10) A notice of assessment must include particulars of the matters contained in the assessment under subsection (1). However, if the notice is given to a superannuation provider, the notice is not to include the calculation of the member's adjusted taxable income.~~

Particulars in notice of determination

- ~~(11) A notice of determination must include particulars of the matters contained in the determination under subsection (2).~~

How a notice is to be given

- ~~(12) A notice of assessment or notice of determination may be given in any manner prescribed by the regulations.~~

Non-compliance not to affect validity of assessment

- ~~(13) The validity of any assessment or determination is not affected by any non-compliance with a provision of this Act.~~

15A Self-assessing superannuation providers

Determination of self-assessing superannuation providers

- ~~(1) The Commissioner may, by writing:~~

- ~~(a) determine that a specified superannuation provider, or each of the superannuation providers included in a specified class of superannuation providers, is a self-assessing superannuation provider in respect of a specified financial year or specified financial years; and~~
- ~~(b) determine the date that is the notification date for that financial year, or the dates that are the respective notification dates for those financial years, for that superannuation provider or each of those superannuation providers, as the case may be.~~

Section_15BSection 43

Definition

———— (2) In this section:

financial year means the 1998–99 financial year or a later financial year that ends before 1 July 2005.

15B Statement etc. by self-assessing superannuation provider

~~*Application*~~

- (1) This section applies to a superannuation provider in relation to a member for a financial year that ends before 1 July 2005 if:
- (a) the superannuation provider is a self-assessing superannuation provider for the financial year; and
- (b) the superannuation provider holds contributed amounts in relation to the member for the financial year; and
- (c) the superannuation provider does not give a statement to the Commissioner under subsection 13(2) in relation to the member for the financial year on or before 31 October following the financial year or such later date (if any) as the Commissioner allowed under that subsection.

~~*Statement by superannuation provider*~~

- (2) The superannuation provider must, not later than the notification date for the financial year:
- (a) prepare a statement in relation to each member that contains the particulars referred to in subsection 13(2); and
- (b) calculate the member's adjusted taxable income for the financial year; and
- (c) if the adjusted taxable income is greater than the surcharge threshold:
- (i) calculate the surchargeable contributions; and
- (ii) calculate the rate of surcharge that applies to the member; and
- (iii) calculate any surcharge payable; and
- (d) give the statement to the Commissioner by electronic transmission.

~~*Provider to pay surcharge in respect of 1999–2000 financial year or later financial years*~~

- (3) If the financial year is the 1999–2000 financial year or a later financial year, the superannuation provider must pay to the Commissioner, not later than 7 days after the day on which the statement is given to the Commissioner under paragraph (2)(d), an amount equal to the total of the amounts of surcharge so calculated to be payable in respect of all the members.

Section 16 ~~Section 43~~

How amounts paid are to be applied

- ~~———— (4) When an amount is paid to the Commissioner by a superannuation provider under subsection (3):~~
- ~~———— (a) the Commissioner is to apply the amount in reduction of any surcharge that is assessed to be payable on the member's surchargeable contributions for the financial year; and~~
- ~~———— (b) if the amount exceeds the surcharge:~~
- ~~———— (i) the excess is to be applied in reduction of any liability of the provider in respect of the member under this Act; and~~
- ~~———— (ii) any amount remaining is to be paid to the provider.~~

Offence

- ~~———— (5) A superannuation provider who contravenes this section commits an offence punishable on conviction by a fine of not more than 60 penalty units.~~

~~Note 1: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.~~

~~Note 2: The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.~~

Superannuation provider not required to give information about calculation of adjusted taxable income

- ~~———— (6) A member is not required to give to a superannuation provider any information relevant to the calculation of the member's adjusted taxable income for a financial year.~~

16 Deferment of liability for surcharge payable by superannuation (unfunded defined benefits) providers

Deferment of liability for surcharge

- ~~———— (1) This section makes provision for the deferment of the liability of a superannuation (unfunded defined benefits) provider to pay surcharge on the surchargeable contributions of a member of the relevant unfunded defined benefits superannuation scheme, and for interest to accrue on the deferred amount.~~

Accounts to be kept

- ~~———— (2) The provider must keep a surcharge debt account for each member.~~

Section 16Section 43

Account to be debited for surcharge

- (3) The provider must debit the account for surcharge assessed to be payable on the member's surchargeable contributions.

Interest to be debited

- (4) If the member's account is in debit at the end of a financial year, the provider must debit the account for interest on the amount by which the account is in debit, calculated at the Treasury bond rate for the last day of the financial year for bonds with a 10 year term.

Rate of interest

- (5) The **Treasury bond rate** for the last day of a financial year for bonds with a 10 year term is:
- (a) if any Treasury bonds with that term were issued on that day — the annual yield on those bonds; or
- (b) otherwise — the annual yield on Treasury bonds with that term, as published by the Reserve Bank of Australia for that day.

Payment to be made when benefit becomes payable

- (6) Subject to subsection (6A), when a superannuation benefit (within the meaning of the *Income Tax Assessment Act 1997*) becomes payable by a superannuation provider for the benefit of a member whose account is in debit, the provider must pay to the Commissioner, within one month after the day on which the superannuation benefit becomes payable, the amount by which the account is in debit. The payment discharges the provider's liability for the surcharge.

- (6A) If:

- (a) a payment split applies to a splittable payment in respect of an interest that a person has as a member; and
- (b) the splittable payment becomes payable in circumstances where the member's surcharge account is in debit;

then the superannuation provider concerned must pay to the Commissioner, within one month after the day the splittable payment became payable, the amount by which the account is in debit (which discharges the provider's liability for the surcharge).

Surcharge debt may be reduced

- (7) The member may make payments to the provider for the purpose of reducing the amount by which the surcharge debt account is in debit.
- (8) If a member makes a payment under subsection (7), the provider must:
- (a) credit the payment to the surcharge debt account; and

Section 17 ~~Section 43~~

- ~~_____ (b) acknowledge receipt of the payment to the member; and~~
- ~~_____ (c) advise the member of the revised balance of the surcharge debt account.~~
- ~~_____ (9) A payment received by the provider under subsection (7) must be forwarded to the Commissioner within one month of receipt.~~

Offences

- ~~_____ (10) A body corporate that contravenes this section commits an offence punishable on conviction by a fine of not more than 300 penalty units.~~

Note: ~~_____ Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.~~

Definitions

- ~~_____ (11) In this section:~~

~~*payment split* means a payment split under Part VIIIB of the *Family Law Act 1975*.~~

~~*splittable payment* has the same meaning as in Part VIIIB of the *Family Law Act 1975*.~~

17 Credit or refund of advance instalment

~~*Application*~~

- ~~_____ (1) This section applies to an advance instalment, paid by a superannuation provider, of surcharge on a member's surchargeable contributions for a financial year.~~

~~*Advance instalment to reduce surcharge*~~

- ~~_____ (2) If surcharge is assessed on the contributions:~~
 - ~~_____ (a) the Commissioner is to apply the advance instalment to reduce the surcharge payable; and~~
 - ~~_____ (b) if the instalment exceeds the surcharge:~~
 - ~~_____ (i) the excess is to be applied in reduction of any liability of the holder of the contributions under this Act; and~~
 - ~~_____ (ii) any amount remaining is to be paid to the holder of the contributions.~~

~~*Repayment of advance instalment if no surcharge*~~

- ~~_____ (3) If no surcharge is assessed on the contributions:~~
 - ~~_____ (a) the advance instalment is to be applied in reduction of any liability of the holder of the contributions under this Act; and~~
 - ~~_____ (b) any amount remaining is to be paid to the holder of the contributions.~~

Section_17ASection 43

17A Periods within which assessments may be made

General provision

- (1) The Commissioner may, subject to this section, at any time amend an assessment of surcharge on a member's surchargeable contributions by making such alterations or additions as the Commissioner thinks necessary, even though surcharge has been paid in respect of the assessment. Such an amendment may be made on the Commissioner's own initiative or at the request of the member or the relevant superannuation provider.

Period for making further amendment

- (2) If:
- (a) an assessment has been amended in any particular in a way that effected a reduction in the amount of surcharge payable; and
- (b) for the purposes of making the amendment, the Commissioner accepted a statement made by or on behalf of a member or a superannuation provider;
- the Commissioner may, within 4 years from the date of service of the notice of the amended assessment, further amend the assessment in, or in respect of, that particular in a way that increases the amount of the surcharge payable to the extent that the Commissioner considers necessary.

Period where avoidance of surcharge

- (3) Subject to this section, if there has been an avoidance of surcharge, the Commissioner may:
- (a) if the Commissioner is of the opinion that the avoidance of surcharge is due to fraud or evasion at any time; or
- (b) in any other case within 4 years from the date upon which the surcharge became due and payable under the assessment;
- amend the assessment by making such alterations or additions as the Commissioner thinks necessary to correct the assessment.

Period where amendment reduces surcharge

- (4) An amendment effecting a reduction in the amount of surcharge payable under an assessment is not to be made after the end of 4 years from the date upon which the surcharge became due and payable under the assessment.

Application or request for extension of period

- (5) If:
- (a) the Commissioner has begun an examination of the affairs of a member or a superannuation provider; and
- (b) the examination was not completed within the period within which the Commissioner may amend an assessment to which the examination relates

Section 17A ~~Section 43~~

~~under subsection (3) or, if that period has been extended by any previous order or orders of the Federal Court of Australia made under subsection (6), or by any previous consent or consents of the member or provider given under subsection (7), within that period as so extended; the Commissioner may, before the end of the period referred to in paragraph (b) of this subsection, apply to the Federal Court for an order extending, or request the member or provider to consent to the extension of, the period within which the Commissioner may amend the assessment under paragraph (3)(b).~~

~~Court may extend period~~

- ~~—— (6) If, on application made to the Federal Court of Australia in accordance with subsection (5), the Court is satisfied that it was not reasonably practicable, or it was inappropriate, for the Commissioner to complete the examination within the period referred to in paragraph (5)(b) because of any action taken by the member or superannuation provider or any failure of the member or superannuation provider to take action that it would have been reasonable for the member or provider to take, the Court may make an order extending the period within which the Commissioner may amend the assessment under paragraph (3)(b) for such period as the Court considers appropriate.~~

~~Member or provider may extend period~~

- ~~—— (7) If a request is made to the member or superannuation provider in accordance with subsection (5), the member or provider may, by writing, consent to the extension of the period within which the Commissioner may amend the assessment under paragraph (3)(b) for such period as is specified in the instrument of consent.~~

~~Meaning of take action~~

- ~~—— (8) In subsection (6), a reference to action taken by a member or superannuation provider includes a reference to the institution by the member or provider of a proceeding before a court or tribunal.~~

~~Period for further amendment reducing surcharge~~

- ~~—— (9) If an assessment has, under this section, been amended in any particular, the Commissioner may, within 4 years from the date upon which surcharge became due under the amended assessment, make, in or in respect of that particular, such further amendment of the assessment as, in the Commissioner's opinion, is necessary to effect such reduction in the amount of surcharge payable under the assessment as is just.~~

~~Case when subsection (9) does not apply~~

- ~~—— (10) Subsection (9) does not authorise the further amendment of an earlier further amendment of an assessment made under subsection (2).~~

Section_18Section 43

Assessment following application by member or superannuation provider

- (11) If:
- (a) an application for an amendment of an assessment is made by a member or superannuation provider within 4 years from the date upon which surcharge became due and payable under the assessment; and
- (b) the member or provider has given to the Commissioner within that period all information needed by the Commissioner for the purpose of deciding the application;
- the Commissioner may amend the assessment when he or she decides the application even though that period has elapsed.

How application for amendment is to be made

- (12) An application for amendment must be made in writing, on a data processing device or by way of electronic transmission and must be signed in accordance with the regulations.

Information to be contained in application

- (13) An application for amendment must be given in the prescribed manner and contain the prescribed information.

Certain other powers of amendment not affected

- (14) Nothing in this section prevents:
- (a) the amendment of an assessment in order to give effect to the decision upon any appeal or review; or
- (b) the amendment of an assessment by way of reduction in the amount of surcharge payable pursuant to an objection made against the assessment or pending any appeal or review; or
- (c) the amendment of an assessment under section 18.

18 Amendment of assessment if tax file number quoted or found out after assessment

Application

- (1) This section applies if:
- (a) an assessment of surcharge on the surchargeable contributions of a member for a financial year has been made; and
- (b) the member did not, before the assessment was made, quote his or her tax file number to the relevant superannuation provider in connection with the operation or the possible future operation of this Act and the Commissioner did not know the tax file number when the assessment was made; and

Section 19 ~~Section 43~~

- ~~_____ (d) the assessed amount was more than it would have been if the member had quoted the tax file number to the provider; and~~
- ~~_____ (e) after the assessment was made:~~
 - ~~_____ (i) the member quoted the tax file number to the provider in connection with the operation or the possible future operation of this Act and the provider informed the Commissioner of the tax file number; or~~
 - ~~_____ (ii) the Commissioner found out the tax file number.~~

Amendment of assessment

- ~~_____ (2) The Commissioner must amend the assessment to reduce the amount of surcharge to the amount that would have been payable if the Commissioner had known the tax file number when the assessment was made.~~

19 Amendment of assessments

Application

- ~~_____ (1) This section applies if:~~
 - ~~_____ (a) after the making of an assessment of surcharge on a member's surchargeable contributions for a financial year:~~
 - ~~_____ (i) the member's adjusted taxable income for the financial year is increased or reduced and the increase or reduction affects a person's liability to pay the surcharge; or~~
 - ~~_____ (ii) the amount of the contributions is greater or less than the amount that was taken to be the amount of the contributions for the purposes of the assessment; or~~
 - ~~_____ (iii) the Commissioner is required or permitted under any other provision of this Act to amend the assessment; and~~
 - ~~_____ (b) the person who was the holder of the surchargeable contributions when the assessment was made is still the holder of the surchargeable contributions.~~

Additional application

- ~~_____ (2) This section also applies if:~~
 - ~~_____ (a) under an assessment of surcharge on a member's surchargeable contributions for a financial year, the rate of surcharge that applies to the member on particular surchargeable contributions for the financial year was assessed to be nil because paragraph 5(3)(e) of the *Superannuation Contributions Tax Imposition Act 1997* applied to the member; and~~
 - ~~_____ (b) the rate of surcharge that applies to the member on these contributions for that financial year is afterwards determined to be greater than nil; and~~
 - ~~_____ (c) the person who was the holder of the surchargeable contributions when the assessment was made is still the holder of the surchargeable contributions.~~

Section 20 ~~Section 43~~

Commissioner may amend assessment

- ~~— (3) The Commissioner may amend the assessment to take account of any matter referred to in subparagraph (1)(a)(i), (ii) or (iii) or paragraph (2)(a) or (b).~~

Amendment increasing surcharge

- ~~— (4) If, as a result of the amendment of the assessment, the amount of surcharge is increased, then, subject to section 16, the amount of the increase is payable within 1 month after the day on which the assessment is amended.~~

Amendment reducing surcharge

- ~~— (5) If, as a result of the amendment of the assessment, the amount of surcharge is reduced:~~
- ~~— (a) the amount by which the surcharge is reduced is taken never to have been payable; and~~
- ~~— (b) the Commissioner must:~~
- ~~— (i) refund the amount of any surcharge overpaid; or~~
- ~~— (ii) apply that amount against any liability of the holder of the surchargeable contributions to the Commonwealth under this Act, and refund to the holder any part of that amount not so applied.~~

Section subject to section 17A

- ~~— (6) This section is subject to section 17A.~~

20 Assessment of liability to additional surcharge

~~Application~~

- ~~— (1) This section applies if:~~
- ~~— (a) after the making of an assessment of surcharge (the *previous assessment*) on a member's surchargeable contributions for a financial year:~~
- ~~— (i) the member's adjusted taxable income for the financial year is increased or reduced and the increase or reduction affects a person's liability to pay the surcharge; or~~
- ~~— (ii) the amount of the contributions is greater or less than the amount that was taken to be the amount of the contributions for the purposes of the previous assessment; and~~
- ~~— (b) the person who was the holder of the surchargeable contributions when the previous assessment was made is no longer the holder of the surchargeable contributions.~~

Additional application

- ~~— (2) This section also applies if:~~
-

Section 20 ~~Section 43~~

- ~~———— (a) under an assessment of surcharge (the *previous assessment*) on a member's surchargeable contributions for a financial year, the rate of surcharge that applies to the member on particular surchargeable contributions for that financial year was assessed to be nil because paragraph 5(3)(e) of the *Superannuation Contributions Tax Imposition Act 1997* applied to the member; and~~
- ~~———— (b) the rate of surcharge that applies to the member on those contributions for that financial year is afterwards determined to be greater than nil; and~~
- ~~———— (c) the person who was the holder of the surchargeable contributions when the previous assessment was made is no longer the holder of the surchargeable contributions.~~

Further assessment

- ~~———— (3) The Commissioner must comply with subsection 15(1) in respect of the member for the financial year as if the action previously taken by the Commissioner under that subsection had not been taken. However, nothing in this section affects the action previously taken.~~

Increase in surcharge

- ~~———— (4) If, under an assessment (the *new assessment*) made because of subsection (3), the amount of surcharge payable exceeds the amount payable under the previous assessment, only the amount of the excess is to be assessed as payable under the new assessment.~~

No change in surcharge

- ~~———— (5) If, under an assessment (the *new assessment*) made because of subsection (3), the amount of surcharge payable is equal to the amount payable under the previous assessment, no amount of surcharge is to be assessed as payable under the new assessment.~~

Reduction in surcharge

- ~~———— (6) If, under an assessment (the *new assessment*) made because of subsection (3), the amount of surcharge payable is less than the amount payable under the previous assessment:~~
 - ~~———— (a) no amount of surcharge is to be assessed as payable under the new assessment; and~~
 - ~~———— (b) the difference is to be applied in reduction of any liability of the holder of the surchargeable contributions under this Act; and~~
 - ~~———— (c) any amount remaining is to be paid to the holder of the surchargeable contributions.~~

Section 21~~Section 43~~

New assessment not to be made in certain circumstances

- ~~———— (7) The Commissioner must not make a new assessment if, were the new assessment an amendment of the previous assessment, section 17A would have precluded the amendment of the previous assessment.~~

21 Payment of the general interest charge if liability increased by an amendment of an assessment

- ~~———— (1) If an amendment of an assessment increasing a person's liability to pay surcharge for a financial year is made, the person is liable to pay the general interest charge on the amount of the increase for each day in the period that:~~
- ~~———— (a) started at the beginning of 15 June in the financial year; and~~
- ~~———— (b) finishes at the end of the day before the amended assessment is made.~~

~~Note: ——— The general interest charge is worked out under Part IIA of the *Taxation Administration Act 1953*.~~

Amendment of nil assessment

- ~~———— (3) If:~~
- ~~———— (a) the Commissioner has calculated that no surcharge is payable by a person on a member's surchargeable contributions for a financial year; and~~
- ~~———— (b) the Commissioner afterwards makes an assessment of surcharge payable by the person on those contributions for the financial year;~~
- ~~the assessment referred to in paragraph (b) is taken to be an amended assessment.~~

22 Payment of general interest charge if surcharge payable under a further assessment

- ~~———— If, under an assessment (the *new assessment*) made under subsection 15(1) because of subsection 20(3), a person is liable to pay an amount of surcharge for a financial year, the person is liable to pay the general interest charge on that amount for each day in the period that:~~
- ~~———— (a) started at the beginning of 15 June in the financial year; and~~
- ~~———— (b) finishes at the end of the day before the new assessment is made.~~

~~Note: ——— The general interest charge is worked out under Part IIA of the *Taxation Administration Act 1953*.~~

23 Tax file numbers

Commissioner may use any tax file numbers for purposes of this Act

- ~~———— (1) The Commissioner may use for the purposes of this Act a tax file number that has been provided for any other purpose under a law relating to taxation or superannuation.~~

Section **24**~~Section 43~~

~~Commissioner may seek member's authority to give tax file number to superannuation provider~~

- ~~———— (2) If:~~
- ~~———— (a) the Commissioner knows a member's tax file number; and~~
 - ~~———— (b) the Commissioner:~~
 - ~~———— (i) has amended, or proposes to amend, an assessment of surcharge payable on the member's surchargeable contributions for a financial year; or~~
 - ~~———— (ii) has made, or proposes to make, an assessment, under section 15 as it applies because of section 20, of surcharge payable on the member's surchargeable contributions for a financial year;~~
- ~~the Commissioner may:~~
- ~~———— (c) request the member to authorise the Commissioner to inform the superannuation provider who is the holder of the contributions of the member's tax file number; and~~
 - ~~———— (d) if the member so authorises the Commissioner, inform the provider accordingly.~~

24 Objections against assessments

~~Member or superannuation provider may object against assessment~~

- ~~———— (1) If:~~
- ~~———— (a) an assessment of surcharge on a member's surchargeable contributions is made; and~~
 - ~~———— (b) the member, or a superannuation provider who is the holder of the contributions, is dissatisfied with the assessment;~~
- ~~the member or provider may object against the assessment in the way set out in Part IVC of the Taxation Administration Act 1953.~~

~~Superannuation provider may object against class of assessments~~

- ~~———— (2) An objection made by a superannuation provider may relate to all the assessments included in a class of assessments. A decision on the objection is taken to be a single decision for the purpose of calculating any fee payable in respect of lodging a reference or appeal in respect of the decision.~~

~~Matters on which Commissioner may rely in deciding an objection~~

- ~~———— (3) In making a decision on the objection in so far as the objection relates to the calculation of the member's adjusted taxable income, the Commissioner is entitled to rely on:~~
- ~~———— (a) the latest assessment of the member's taxable income under the Income Tax Assessment Act; and~~

Section_24~~Section 43~~

~~(b) the latest statement of the member's surchargeable contributions given to the Commissioner by the superannuation provider.~~

Note: ~~If a member is dissatisfied with an assessment in so far as it relates to the calculation of the member's surchargeable contributions, as based on an amount or amounts set out in a statement given to the Commissioner by a superannuation provider under section 13, the member may make a complaint to the Superannuation Complaints Tribunal under section 15CA of the *Superannuation (Resolution of Complaints) Act 1993* about the unfairness or unreasonableness of the superannuation provider's decision to set out the amount or any of the amounts in the statement.~~

~~Part 4 — Recovery of unpaid surcharge, advance instalment, general interest charge or late payment penalty~~

~~25 — Penalty for non-payment of surcharge or advance instalment~~

Liability to pay general interest charge

- (1) If an amount of surcharge or advance instalment that a person is liable to pay remains unpaid after the time by which it is due to be paid, the person is liable to pay the general interest charge on the unpaid amount.

Note: — The general interest charge is worked out under Part IIA of the *Taxation Administration Act 1953*.

General interest charge period

- (2) The person is liable to pay the general interest charge for each day in the period that:
- (a) started at the beginning of the day by which the surcharge or advance instalment was due to be paid; and
- (b) finishes at the end of the last day on which, at the end of the day, any of the following remains unpaid:
- (i) the surcharge;
- (ii) the advance instalment;
- (iii) general interest charge on any of the surcharge or the advance instalment.

Commissioner's right to sue not affected

- (3B) This section does not prevent the Commissioner from suing for the recovery of any unpaid surcharge, advance instalment, general interest charge or late payment penalty at any time after it becomes due and payable.

~~25A — Additional liability to pay general interest charge~~

Commissioner may give notice

- (1) If general interest charge (the *primary general interest charge*) is payable by a person under section 21 or 22, the Commissioner may give a notice to the person specifying a date after which general interest charge will apply under this section. The specified date must be at least 30 days after the notice is given.

Section 25A~~Section 43~~

Liability to pay general interest charge

- ~~———— (2) If any of the primary general interest charge remains unpaid after the day specified in the notice, the person is liable to pay general interest charge on the unpaid amount.~~

~~Note: ——— The general interest charge is worked out under Part IIA of the *Taxation Administration Act 1953*.~~

General interest charge period

- ~~———— (3) The person is liable to pay the general interest charge for each day in the period that:~~
- ~~———— (a) started at the beginning of the day specified in the notice; and~~
- ~~———— (b) finishes at the end of the last day on which, at the end of the day, any of the following remains unpaid:~~
- ~~———— (i) primary general interest charge;~~
- ~~———— (ii) general interest charge on primary general interest charge.~~

Part 5 — Administration

30 — General administration of Act

~~———— The Commissioner has the general administration of this Act.~~

~~Note: ——— An effect of this provision is that people who acquire information under this Act are subject to the confidentiality obligations and exceptions in Division 355 in Schedule 1 to the *Taxation Administration Act 1953*.~~

31 — Annual report

~~———— After the end of each financial year, the Commissioner must give the Treasurer a report on the working of this Act during the year for presentation to the Parliament.~~

Section 33Section 43

Part 6—Miscellaneous

33 No amount payable by Commonwealth under this Act

Nothing in this Act makes the Commonwealth liable to pay any amount.

34 Act not to operate so as to contravene Constitution

This Act does not apply in any circumstance where its application would or might result in a contravention of the Constitution.

34A Exclusion of certain members

This Act does not apply to a person who is a member because he or she is a judge of a court of a Territory at the commencement of this Act.

35 Information to be given to Commissioner by superannuation provider who pays surcharge or advance instalment

(1) A superannuation provider who makes a payment to the Commissioner of surcharge or advance instalment on a member's surchargeable contributions for a financial year must give the Commissioner, within a period notified to the provider by the Commissioner, a statement setting out such information as is required by the regulations.

(2) The information that may be required includes information about other members or former members in relation to whom the Secretary may determine the proportion of care that must be provided; and provider is or was a superannuation provider.

(b) the criteria that the Secretary must consider in determining that proportion.

10 Kinds of people in respect of whom Secretary may determine proportion of care

For subsection 12-5(1) of the Act, the Penalty: 60 penalty units.

Note 1: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

Note 2: The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.

Section **35B** ~~Section 43~~

35B Prohibition of avoidance schemes

~~———— A superannuation provider or fund trustee must not enter into, commence to carry out, or carry out, a scheme if the superannuation provider or fund trustee entered into, commenced to carry out, or carried out, the scheme or any part of the scheme with the intention that the scheme would result, or be likely to result, in the avoidance of the surcharge tax, including through the use of allocated surplus amounts.~~

35A Contravention notices

Service of notice

~~———— (1) If the Commissioner has reason to believe that a superannuation provider has contravened section 13, 14, 15B or 35, the Commissioner may cause a notice (a **contravention notice**) to be served on the provider in accordance with the regulations.~~

Particulars to be included in the notice

~~———— (2) A contravention notice is to set out:~~
~~———— (a) particulars of the alleged contravention; and~~
~~———— (b) the prescribed penalty for the contravention and the person to whom, the place at which, and the manner in which, the penalty may be paid; and~~
~~———— (c) the date of the notice and a statement that the penalty may be paid within 14 days after that date;~~
~~and may contain any other particulars that the Commissioner thinks necessary.~~

Notification that person may pay prescribed penalty

~~———— (3) A contravention notice is to state that, if the provider does not wish the matter to be dealt with by a court, the provider may lodge with the Commissioner a signed statement to that effect in the manner stated in the notice and pay the prescribed penalty for the contravention.~~

~~———— (4) The prescribed penalty is 5 penalty units for each week or part of a week during which the contravention continues.~~

~~Note: ——— See section 4AA of the *Crimes Act 1914* for the current value of a penalty unit.~~

Consequences of payment of prescribed penalty

~~———— (5) If:~~
~~———— (a) a contravention notice has been served on a superannuation provider; and~~
~~———— (b) before the end of the period of 14 days stated in the notice or, if the Commissioner so allows, at any time before service of a summons in respect of the contravention, the amount of the prescribed penalty is paid in accordance with the notice; and~~

Section_11Section 43

- (e) a statement, signed by the provider, to the effect that the provider does not wish the matter to be dealt with by a court, is received by the person to whom the amount of the penalty is paid; and
- (d) the contravention that resulted in the service of the contravention notice has ceased;
- the following kinds of people provisions have effect:
- (e) any liability of the provider in respect of the contravention is taken to be discharged;
- (f) no further proceedings are specified to be taken in respect of the contravention;
- (a) people with special needs;
- (b) low-means care recipients;
- (c) supported residents, concessional residents and assisted residents.
- 11 Criteria that must be considered in making —(g) —no conviction for the contravention is taken to have been recorded.

Payment by cheque

- (6) If the amount of the prescribed penalty is paid by cheque, payment is taken not to be made unless the cheque is honoured upon presentation.

Other proceedings not affected

- (7) Except as provided by subsection (5), this section does not prejudice or affect the institution or prosecution of proceedings in respect of a contravention of section 13, 14, 15B or 35 or limit the amount of the fine that may be imposed by a court in respect of such a contravention.

No requirement to serve contravention notice

- (8) This section does not require the service of a contravention notice or affect the liability of a person to be prosecuted in a court in respect of a contravention of section 13, 14, 15B or 35 in relation to which a contravention notice has not been served.

40 Records to be kept and retained by superannuation provider

Superannuation provider to keep records

- (1) A superannuation provider must keep records that record and explain all transactions and other acts engaged in by the provider, or required to be engaged in by the provider, under this Act.

How records to be kept

- (2) The records must be kept:

Section 41~~Section 43~~

- ~~———— (a) in writing in the English language or so as to enable the records to be readily accessible and convertible into writing in the English language; and~~
- ~~———— (b) so that the provider's liability under this Act can be readily worked out.~~

Period for retention of records

- ~~———— (3) A superannuation provider who has possession of any records kept or obtained under or for the purposes of this Act must retain them until the end of 5 years after they were prepared or obtained, or the completion of the transactions or acts to which those records relate, whichever is the later.~~

When records need not be kept

- ~~———— (4) This section does not require a superannuation provider to retain records if:~~
 - ~~———— (a) the Commissioner has notified the provider that the retention of the records is not required; or~~
 - ~~———— (b) the provider is a company that has gone into liquidation and been finally dissolved.~~

Offences

- ~~———— (5) A superannuation provider who contravenes this section commits an offence punishable on conviction by a fine of not more than 60 penalty units.~~

Note 1: ~~Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.~~

Note 2: ~~The amount of a penalty unit is stated in section 4AA of the *Crimes Act 1914*. If a body corporate is convicted of an offence, subsection 4B(3) of that Act allows a court to impose a fine that is not greater than 5 times the maximum fine that could be imposed by the court on an individual convicted of the same offence.~~

Note 3: ~~In a prosecution for an offence against subsection (5), the defendant bears an evidential burden in relation to the matter in subsection (4) (see subsection 13.3(3) of the *Criminal Code*).~~

41 Application of the *Criminal Code*

- ~~———— Chapter 2 of the *Criminal Code* applies to all offences against this Act.~~

42 Regulations

- ~~———— (1) The Governor General may make regulations prescribing matters:~~
 - ~~———— (a) required or permitted by this Act to be prescribed; or~~
 - ~~———— (b) necessary or convenient to be prescribed for carrying out or giving effect to this Act;~~~~and, in particular, prescribing:~~
 - ~~———— (c) how statements are to be given to the Commissioner; and~~

~~Section 42~~Section 43

- ~~———— (d) penalties, not exceeding a fine of 5 penalty units, for offences against the regulations.~~
- ~~———— (2) The regulations may modify Superannuation Contributions Ruling SCR 97/1 by doing any one or more of the following:~~
 - ~~———— (a) inserting a provision in the ruling;~~
 - ~~———— (b) omitting a provision from the ruling;~~
 - ~~———— (c) altering a provision in the ruling.~~

Part 7—Interpretation

43—Definitions

— In this Act, unless the contrary intention applies:

adjusted taxable income has the meaning given by section 7A or 7B, whichever is applicable.

advance instalment has the meaning given by section 11.

allocated surplus amount, in relation to a member of a superannuation fund in relation to a financial year, means an amount that is allocated by the relevant superannuation (accumulated benefits) provider for the benefit of the member in respect of the financial year (other than an amount paid for or by the member to the provider) to the extent to which the allocated amount exceeds an amount that, in the opinion of an eligible actuary according to Australian actuarial practice, is reasonable having regard to:

- (a) the amounts paid by or for the member to the provider; and
- (b) the fund's investment earnings relating to the member's interest in the fund; and
- (c) any other relevant matters.

annuity has the same meaning as in section 10 of the *Superannuation Industry (Supervision) Act 1993* and includes such an annuity that is not presently payable.

approved deposit fund has the same meaning as in section 10 of the *Superannuation Industry (Supervision) Act 1993*.

assessment means an assessment made under subsection 15(1).

class: a single member may constitute a class of members and a single superannuation scheme may constitute a class of superannuation schemes.

Commissioner means the Commissioner of Taxation.

complying approved deposit fund has the meaning given by section 47 of the *Superannuation Industry (Supervision) Act 1993*.

complying superannuation fund has the meaning given by section 45 of the *Superannuation Industry (Supervision) Act 1993*.

contributed amounts:

- (a) in relation to a member (other than a member of a defined benefits superannuation scheme) for a financial year, means:

Section 43

- ~~————— (i) any amounts paid for or by the member to, or otherwise credited or attributed to an account for the member by, a superannuation provider for the financial year other than amounts to which subparagraph (ii) or (iii) applies, less any part of such an amount that is, under the regulations, to be regarded as reasonably attributable to interest; and~~
- ~~————— (ii) if there are any regulations in force for the purposes of this subparagraph in respect of the financial year—any amounts referred to in the regulations that are credited, allocated or attributable to the member for the financial year less any part of such an amount that is, under the regulations, to be regarded as reasonably attributable to interest; and~~
- ~~————— (iii) if there are no regulations in force for the purposes of subparagraph (ii) and the financial year is later than the 1996–97 financial year—any allocated surplus amount in relation to the member in respect of the financial year; or~~
- ~~————— (b) in relation to a member of a defined benefits superannuation scheme for a financial year:~~
 - ~~————— (i) means the surchargeable contributions of the member for the financial year; and~~
 - ~~————— (ii) includes any other amount that may be reasonably regarded as attributable to the member under the scheme for the financial year.~~

~~**defined benefits superannuation scheme** means:~~

- ~~————— (a) a public sector superannuation scheme that:~~
 - ~~————— (i) is a regulated superannuation fund or an exempt public sector superannuation scheme; and~~
 - ~~————— (ii) has at least 1 defined benefit member; or~~
- ~~————— (b) a regulated superannuation fund (other than a public sector superannuation scheme):~~
 - ~~————— (i) that has at least 1 defined benefit member; and~~
 - ~~————— (ii) some or all of the contributions to which are not allocated to any individual member but are paid into and accumulated in a fund in the form of an aggregate amount.~~

~~**defined benefit member** means a member entitled, on retirement or termination of his or her employment, to be paid a benefit defined, wholly or in part, by reference to either or both of the following:~~

- ~~————— (a) the amount of:~~
 - ~~————— (i) the member's salary at a particular date, being the date of the termination of the member's employment or of the member's retirement or an earlier date; or~~
 - ~~————— (ii) the member's salary averaged over a period before retirement;~~
- ~~————— (b) a stated amount.~~

~~**Deputy Commissioner** means the Deputy Commissioner of Taxation.~~

determination ~~means a determination made under subsection 15(2).~~

For subsection 12-5(2) of the Act, the Secretary must consider the following criteria:

- (a) the need for places in each region for the kinds of people specified in section 10;
- (b) the current service provision levels, including provisional allocations for those kinds of people;
- (c) the existing provision of extra service places in each region;
- (d) the need to distribute places equitably in each region, and in each State and Territory, as far as practicable.

Part 4 The allocation process

Part 7 Interpretation

Division 1 Invitations to apply for allocation of places

Section 25 ~~Section 43~~

Part 4—The allocation process

Division 1—Invitations to apply for allocation of places

25 Purpose of this Division

For paragraph 13-2(3)(e) of the Act, this Division specifies the kinds of people that may be specified in an invitation to apply for an allocation of places.

26 Proportion of care for specified kinds of people

The kinds of people that may be specified in an invitation to apply for an allocation of places are as follows:

- (a) people with special needs;
- (b) low-means care recipients;
- (c) supported residents, concessional residents and assisted residents.

Division 2—Assessment of applications

27 Purpose of this Division

For section 14-2 of the Act, this Division sets out the matters that the Secretary must consider in deciding, in relation to each application for the allocation of places in respect of a particular type of subsidy, which allocation of places would best meet the needs of the aged care community in a region.

28 Competitive assessment of applications for allocations

(1) For an allocation of places in respect of residential care subsidy, the Secretary must consider the following matters:

- (a) whether the people who manage, or propose to manage, the aged care service that is providing, or would provide, the care to which the places relate have the necessary expertise and experience to do so;
- (b) if applicable, whether the premises used, or intended to be used, to provide the care to which the places relate are suitably planned and located for the provision of aged care;
- (d) if the applicant has been a provider of aged care—the applicant's:
 - (i) conduct as a provider; and
 - (ii) compliance with its responsibilities as a provider and its obligations arising from the receipt of any payments from the Commonwealth for providing that aged care;
- (e) if the applicant has relevant key personnel in common with a person who is or has been an approved provider—that person's:
 - (i) conduct as a provider of aged care; and
 - (ii) compliance with its responsibilities as a provider and its obligations arising from the receipt of any payments from the Commonwealth for providing that aged care;
- (f) the measures that the applicant proposes to implement:
 - (i) to protect the rights of care recipients; and
 - (ii) for the provision of appropriate care for care recipients who are people with special needs.

(1A) For an allocation of places in respect of flexible care subsidy for short-term restorative care, the Secretary must consider the following matters:

- (a) the applicant's demonstrated experience in delivering restorative care that would meet the objectives of the STRC Programme and ensure appropriate outcomes for care recipients;
- (b) if the applicant has been a provider of aged care—whether the applicant has complied with its responsibilities as a provider and its obligations

Section 29 ~~Section 43~~

arising from the receipt of any payments from the Commonwealth for providing that aged care;

(c) the model of service delivery that the applicant proposes to adopt in order to meet the objectives of the STRC Programme, including:

(i) how the applicant proposes to effectively engage with prospective care recipients, and their carers (if any), to prepare flexible care agreements for the care recipients; and

(ii) how the applicant proposes to utilise the connections it has to the community in which it proposes to provide short-term restorative care (including connections to primary care and other service providers) and how these connections will support a multi-disciplinary approach to care delivery; and

(iii) how the applicant proposes to deliver short-term restorative care in a home care setting or a residential care setting, or both a home care setting and a residential care setting; and

(iv) how the applicant proposes to transition care recipients between care settings.

(2) The reference in paragraphs (1)(d) and (e) and (1A)(b) to aged care includes a reference to any care for the aged, whether provided before or after the commencement of this section, in relation to which any payment was or is payable under a law of the Commonwealth.

(3) For paragraph (1)(e), the applicant has *relevant key personnel in common* with a person who is or has been an approved provider (the *other provider*) if:

(a) at the time the other provider provided aged care, another person was one of the other provider's key personnel; and

(b) that other person is one of the applicant's key personnel.

29 Diversity of choice for care recipients

For an allocation of places in respect of residential care subsidy, the Secretary must consider whether, if the application is approved, the allocation will increase diversity of choice for current and future care recipients, and their carers and families, having regard to the different kinds of services offered in the region.

Example: Diversity of choice for different kinds of services might be promoted, for instance, in relation to any of the following:

(a) service in a particular location;

(b) service for people with special needs;

(c) service for care recipients affected by dementia;

(d) ageing in place service;

(e) service to meet the needs of couples.

30 Continuity of care

For an allocation of places in respect of residential care subsidy, the Secretary must consider whether, if the application is approved, the service to which the application relates would be more likely to be able to offer continuity of care to current and future care recipients.

31 Secretary may also consider other matters

For an allocation of places in respect of residential care subsidy or flexible care subsidy for short-term restorative care, the Secretary may also consider any other relevant matters.

Division 3—Conditions of allocation of places

33 Conditions of allocation—generally

(1) For subsection 14-6(2) of the Act, the Secretary must determine conditions to the following effect:

(a) that a care recipient cannot be discharged and readmitted:

(i) to attract the accommodation supplement under the Act; or

(ii) to attract the accommodation supplement or the concessional resident supplement under the *Aged Care (Transitional Provisions) Act 1997*; or

(ia) to attract the initial entry adjustment supplement set out in Subdivision I of Division 5 of Part 3 of Chapter 2 of the *Subsidy Principles 2014*; or

(iib) to attract the initial entry adjustment supplement set out in Subdivision H of Division 8 of Part 3 of Chapter 2 of the *Aged Care (Transitional Provisions) Principles 2014*; or

(iii) to enable an aged care service to charge the care recipient an accommodation bond;

(b) that an aged care service will be recognised as a new service only if the service relocates to:

(i) a facility built for the service's relocation; or

(ii) a location that has no part of its catchment area in common with the catchment area of the location from which it moves;

(c) that Part III of Determination No. ADPCA 10F 3/1995 made under the *Aged or Disabled Persons Care Act 1954*, as in force on 30 September 1997, applies to a care recipient who was a resident of an approved hostel under that Act on that date.

Example: A service will not be recognised as a new service only because of any of the following:

(a) a change of approved provider for the service;

(b) a change in the number of places allocated to the service;

~~*eligible actuary* means a Fellow or Accredited Member of the Institute of Actuaries of Australia.~~

~~*eligible termination payment* has the same meaning as in Subdivision AA of Division 2 of Part III of the Income Tax Assessment Act.~~

~~*excessive component* of an eligible termination payment has the meaning given by subsection 27A(1) of the Income Tax Assessment Act.~~

~~*exempt public sector superannuation scheme* has the same meaning as in section 10 of the *Superannuation Industry (Supervision) Act 1993*.~~

Section ~~33~~ **Section 43**

~~**funded defined benefits superannuation scheme** means a defined benefits superannuation scheme that is not an unfunded defined benefits superannuation scheme.~~

~~**general interest charge** means the charge worked out under Part IIA of the Taxation Administration Act 1953.~~

~~**holder** of the surchargeable contributions of a member for a financial year has the meaning given by sections 8A and 10A.~~

~~**Income Tax Assessment Act** means the *Income Tax Assessment Act 1936*.~~

~~**interest** (except in the definition in this section of **contributed amounts**) means the general interest charge payable under section 21 or 22.~~

~~**late payment penalty** means general interest charge payable under section 25 or 25A.~~

~~**life assurance company** has the same meaning as in subsection 6(1) of the Income Tax Assessment Act.~~

~~**member** means a member of a superannuation fund or of an approved deposit fund and includes:~~

- ~~_____ (a) the holder of an RSA; and~~
- ~~_____ (b) the purchaser of an annuity from a life assurance company;~~
- ~~_____ and includes a person who has been such a member.~~

~~**notification date** means:~~

- ~~_____ (a) for the 1996-97 financial year—15 December 1997; or~~
- ~~_____ (b) for the 1997-98 financial year—31 October following the financial year; or~~
- ~~_____ (c) for a later financial year:~~
 - ~~_____ (i) if the relevant superannuation provider is a self-assessing superannuation provider for the financial year—the date determined by the Commissioner in relation to the provider for the financial year under section 15A; or~~
 - ~~_____ (ii) otherwise—31 October following the financial year.~~

~~**post-June 83 component** of an eligible termination payment has the meaning given by section 27AA of the Income Tax Assessment Act.~~

~~**public sector superannuation scheme** means a scheme for the payment of superannuation, retirement or death benefits, where the scheme is established:~~

- ~~_____ (a) by or under a law of the Commonwealth, a law of a State or a law of a Territory; or~~
- ~~_____ (b) under the authority of:~~
 - ~~_____ (i) the Commonwealth or the government of a State or Territory; or~~

Section 33 ~~Section 43~~

- ~~(ii) a municipal corporation, another local governing body or a public authority constituted by or under a law of the Commonwealth, a law of a State or a law of a Territory.~~

~~*regulated superannuation fund* has the same meaning as in the *Superannuation Industry (Supervision) Act 1993*.~~

~~*retained amount* of the post June 83 component of an eligible termination payment has the meaning given by section 27AC of the Income Tax Assessment Act.~~

~~*rolled-over* has the meaning given by paragraph 27A(13)(a) of the Income Tax Assessment Act.~~

~~*RSA* has the same meaning as in the *Retirement Savings Accounts Act 1997*.~~

~~*RSA provider* has the same meaning as in the *Retirement Savings Accounts Act 1997*.~~

~~*Second Commissioner* means a Second Commissioner of Taxation.~~

~~*self-assessing superannuation provider*, in relation to a financial year, means a superannuation provider specified, or included in a class of superannuation providers specified, in a determination in force under paragraph 15A(1)(a) in respect of that financial year.~~

~~*superannuation (accumulated benefits) provider* means a superannuation provider that is not a superannuation (defined benefits) provider.~~

~~*Superannuation Contributions Ruling SCR 97/1* means:~~

- ~~(a) the instrument known as Superannuation Contributions Ruling SCR 97/1 that was made available by the Commissioner before the commencement of this definition as that instrument existed immediately before that commencement; or~~
- ~~(b) if that instrument has been modified by the regulations after that commencement—that instrument as so modified.~~

~~*superannuation contributions surcharge* or *surcharge* means the tax imposed by the *Superannuation Contributions Tax Imposition Act 1997*.~~

~~*superannuation (defined benefits) provider* means a superannuation (funded defined benefits) provider or a superannuation (unfunded defined benefits) provider.~~

~~*superannuation fund* means:~~

- ~~(a) a fund that:~~
- ~~(i) is an indefinitely continuing fund; and~~
- ~~(ii) is a provident, benefit, superannuation or retirement fund; or~~
- ~~(b) a public sector superannuation scheme.~~
-

Section 33 ~~Section 43~~

~~*superannuation (funded defined benefits) provider*~~ means a superannuation provider that is the trustee of a superannuation fund established for the purposes of a funded defined benefits superannuation scheme.

~~*superannuation provider*~~ means:

- ~~—— (a) the trustee of a superannuation fund or of an approved deposit fund; or~~
- ~~—— (b) an RSA provider; or~~
- ~~—— (c) a temporary relocation of the service; life assurance company.~~
- ~~—— (d) an amalgamation of co-located services.~~

~~—— (2) The Secretary may determine other relevant conditions.~~

Part 5—When allocations take effect

Division 1—When allocations take effect

35 Purpose of this Division

For section 15-1 of the Act, this Division specifies matters to which the Secretary must have regard in deciding whether to determine that a person is in a position to provide care, in respect of places allocated to the person, for which residential care subsidy may be paid.

36 Matters to which Secretary must have regard

(1) The matters to which the Secretary must have regard are as follows:

- (a) whether the person has received, from authorities in the State or Territory where the residential care service is located, authorisation that the service's premises can be occupied;
- (b) whether the person has applied for accreditation of the service, and has paid all application fees;
- (c) whether the person has made arrangements for the efficient management and operation of the service;
- (d) the results of any inspection of the premises by officers of the Department.

(2) The Secretary may also have regard to any other relevant matter.

Division 2—Provisional allocation periods

37 Purpose of this Division

For subsection 15-7(3A) of the Act, this Division specifies the matters that must be considered by the Secretary when determining whether exceptional circumstances exist that justify the granting of a further extension.

38 Matters to be considered

(1) For subsection 15-7(3A) of the Act, the matters the Secretary must have regard to when considering whether exceptional circumstances justifying the granting of a further extension are:

(a) whether there are any unusual or unforeseen matters outside the control of the approved provider, including but not limited to the occurrence of a natural disaster or emergency situation, preventing the approved provider from applying under section 15-1 of the Act for a determination that the approved provider is in a position to provide care; and

(b) whether the approved provider will be in a position to provide care within the period of the extension; and

(c) whether granting the extension is necessary because no other provider is able to satisfy the care needs in the region.

Note: The Secretary will consider the matters set out in this section when determining whether exceptional circumstances justify an extension of the provisional allocation period for a further 12 months, taking the total provisional allocation period beyond six years.

Part 6 Transfer of places other than provisionally allocated places

Part 7 Interpretation

Division 1 Application of this Part

Section 41 ~~Section 43~~

Part 6—Transfer of places other than provisionally allocated places

~~Division 1—~~*superannuation (unfunded defined benefits) provider* means a superannuation provider that is the trustee of a superannuation fund established for the purposes of a superannuation scheme that is an unfunded defined benefits superannuation scheme.

~~surchargeable contributions~~ has the meaning given by section 8.

~~surcharge threshold~~ has the meaning given by section 9.

~~taxable income~~ of a member for a year of income means the member's taxable income of that year of income as assessed under the Income Tax Assessment Act.

~~taxed element~~ of the retained amount of the post June 83 component of an eligible termination payment has the meaning given by section 27AC of the Income Tax Assessment Act.

~~the 1996-97~~ **Application of this Part**

41 Application of this Part

This Part applies to places other than provisionally allocated places.

Division 2—Transfer of places**42 Purpose of this Division**

For section 16-2 of the Act, this Division:

- (a) specifies other information that is to be included in a transfer notice for the transfer of a place from an approved provider to another person (the *proposed transferee*); and
- (b) sets out matters that the Secretary must consider:
 - (i) in deciding whether to determine another period for paragraph 16-2(4)(a) or (b) of the Act; and
 - (ii) in determining another period.

43 Other information to be included in transfer notice—places in respect of residential care or flexible care subsidy

(1) For subparagraph 16-2(3)(h) of the Act, a transfer notice from an approved provider to transfer places in respect of residential care or flexible care subsidy must include the following other information:

- (a) whether the provider has notified the affected care recipients, or their representatives, about the proposed transfer, and if so, how and when they were notified, or when it is proposed that they would be notified; and
- (b) whether any concerns about the proposed transfer were expressed to the provider by care recipients, or their representatives, and if so, the measures the provider and the proposed transferee propose to take to deal with the concerns; and
- (c) the measures that the provider proposes to take to:
 - (i) help the care recipients find suitable alternative care and accommodation of their choice if they do not wish to transfer to the new service;
 - (ii) maintain services for the affected care recipients, while transferring services;
 - (iii) help the affected care recipients move (with their personal possessions) if they are required to relocate;
 - (iv) ensure that the affected care recipients will not be disadvantaged because of the proposed transfer.

(2) The transfer notice must also include the following information, given by the proposed transferee:

- (a) how the transferee proposes to:
 - (i) undertake the responsibilities of an approved provider under Parts 4.1 and 4.2 of the Act and Part 4.2 of the Aged Care (Transitional Provisions) Act 1997; and

Section 45~~Section 43~~

- (ii) provide accommodation and care for care recipients with special needs.
 - (b) if the transferee is a commencing service, or proposes to construct or develop premises to accommodate the transferred places;
 - (i) a description of the project; and
 - (ii) a detailed timetable for the project.
 - (c) how the transferee intends to comply with any existing conditions of allocation and any conditions that are varied as part of the application to transfer the places.
- (3) The latest financial statements of the proposed transferee's aged care services (if any) must also be included with the transfer notice.

45 Matters to be considered in deciding whether to determine different notice period

- (1) For subsection 16-2(6) of the Act, the Secretary must consider the following matters in deciding whether to determine another notice period for paragraph 16-2(4)(a) or (b) of the Act:
 - (a) the reasons why the different period has been requested;
 - (b) any concerns about the application expressed by care recipients in the aged care service about the timing of the transfer.
- (2) The Secretary may also consider any other relevant matter.

46 Matters to be considered in determining different notice period

- (1) For subsection 16-2(6) of the Act, if the Secretary has decided to determine another notice period for paragraph 16-2(4)(a) or (b) of the Act, the Secretary must consider the following matters in determining the other notice period:
 - (a) any concerns about the transfer notice expressed by care recipients who receive care through the applicant's aged care service;
 - (b) whether the period will be adequate to allow for the processing of the transfer notice.
- (2) The Secretary may also consider any other relevant matters.

Division 3—Consideration of transfers**47 Purpose of this Division**

For paragraph 16-3(1)(g) of the Act, this Division sets out other matters that the Secretary must consider after receiving a transfer notice.

48 Other matters that must be considered

(1) The Secretary must consider the effect of the proposed transfer, on the current and future care recipients in:

- (a) the region from which the places will be transferred; and
- (b) the region to which the places will be transferred.

(2) In considering the effect of the proposed transfer on current and future care recipients, the Secretary must take into account the following:

- (a) the extent to which the provision of aged care in the region to which the places are to be transferred will benefit as a result of the transfer;
- (b) the extent to which the provision of aged care in the region from which the places are to be transferred will be adversely affected as a result of the transfer;
- (c) whether the transfer would increase or lessen the diversity of choice available to care recipients in the regions, having regard to the different kinds of services available in the region;
- (d) whether the transfer will increase the likelihood of care recipients receiving continuity of care in a region;
- (e) any concerns about the transfer expressed by care recipients who are provided with care through the applicant's aged care service;
- (g) if, after the transfer, the places would relate to the same aged care service:
 - (i) the suitability of the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, in particular, whether the premises would comply with the Aged Care Quality Standards; and
 - (ii) for a transferee who owns the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, being premises that would not comply with the Aged Care Quality Standards—the failure of the transferee to have improved the premises.

Example for paragraphs (2)(a) and (b):

The Secretary may consider whether the transfer would affect the provision, in the regions, of aged care services that meet particular needs, including the provision of the following:

- (b) services for those affected by dementia;
- (c) ageing in place services;

Part 6 Transfer of places other than provisionally allocated places

Part 7 Interpretation

Division 3 Consideration of transfers

Section 48 ~~Section 43~~

(d) services for couples with differing care needs.

The Secretary may also consider the effect of the transfer on the quality of services provided in the regions.

Example for paragraph (2)(c):

In considering choice, kinds of services available in the region may include the following:

(a) services that have extra service status;

(b) ageing in place services;

(c) service for care recipients affected by dementia;

(d) services for people with special needs.

Example for paragraph (2)(d):

The Secretary may take into account whether the service has demonstrated its long-term ~~year~~ means the financial and organisational viability ~~year starting on 1 July 1996~~.

(3) The Secretary may consider any other relevant matter.

Division 4—Other matters**49 Purpose of this Division**

This Division specifies other matters relating to the transfer of places from one person (the *transferor*) to another person (the *transferee*).

51 Information that may be given to transferee and time for giving information*Information that may be given to transferee*

(1) For section 16-10 of the Act, the Secretary may give the transferee information about the following matters:

- (a) the types of subsidies paid to the transferor for the aged care service in which places being transferred are included;
- (b) the likely future adjustments to the subsidy payments;
- (d) if the aged care service in which the places being transferred are included is a residential care service:
 - (ii) matters relating to whether the service meets its accreditation requirement; and
 - (iii) matters relating to the residential care grants (if any) made in respect of the service;
- (e) matters relating to any of the following payments that have been made in respect of the aged care service in which the places being transferred are included:
 - (i) capital payments of a kind specified in the *Aged Care (Transitional Provisions) Principles 2014* for the purposes of section 43-6 of the *Aged Care (Transitional Provisions) Act 1997*;
 - (ii) capital payments of a kind specified in the *Subsidy Principles 2014* for the purposes of section 43-6 of the Act;
- (f) compliance by the transferor with the transferor's responsibilities under Chapter 4 of the Act in relation to the aged care service referred to in paragraph (e), including any action that has been taken or is proposed to be taken, under Part 7B of the Quality and Safety Commission Act, in relation to that aged care service;
- (g) for care recipients who are receiving residential care from the transferor's aged care service:
 - (i) their current classification levels of care (if applicable); and
 - (ii) their classification histories; and
 - (iii) their ~~the 1997-98~~ financial status;
- (h) the conditions to which the places being transferred are subject;
- (i) any other matters about the transferor's aged care service of which the Secretary considers the transferee should be informed.

Section 52~~Section 43~~

- (2) However, the Secretary must not give the transferee information that would, or would be likely to, disclose the identity of any care recipient.

When information is to be given

- (3) If the Secretary decides to give the transferee information under subsection (1), the Secretary must give the information to the transferee at least 28 days before the transfer day.

Note: The transfer day is the day when the transfer of an allocated place from one person to another takes effect. The day is set under section 16-8 of the Act.

- (4) However, if the transferor requests the Secretary, in writing, to give the information to the transferee, the Secretary must comply with the request within 28 days after receiving it.

52 Records to be given by transferor to transferee

For paragraph 16-11(2)(h) of the Act, the transferor must give the transferee the records of the name and contact details of each representative of a care recipient who is receiving care in respect of a place being transferred.

Part 7—Transfer of provisionally allocated places

Division 1—Application of this Part

53 Application of this Part

This Part applies to provisionally allocated places.

Division 2—Transfer of provisionally allocated places

54 Purpose of this Division

For section 16-13 of the Act, this Division:

- (a) specifies other information to be included in a transfer notice for the transfer of a provisionally allocated place from an approved provider to another person (the *proposed transferee*); and
- (b) sets out matters that the Secretary must consider:
 - (i) in deciding whether to determine another period for paragraph 16-13(4)(a) or (b) of the Act; and
 - (ii) in determining another period.

55 Other information to be included in transfer notice

(1) For paragraph 16-13(3)(j) of the Act, a transfer notice by an approved provider (the *transferor*) to transfer provisionally allocated places must include the following other information:

- (a) the reasons why the transferor seeks to have the provisionally allocated places transferred;
- (b) the exceptional circumstances that the transferor considers will justify the transfer in meeting the needs of the aged care community in the region for which the places were provisionally allocated.

(2) The transfer notice must also include the following information, given by the proposed transferee:

- (a) how the transferee proposes to undertake the responsibilities of an approved provider under Parts 4.1 and 4.2 of the Act and Part 4.2 of the *Aged Care (Transitional Provisions) Act 1997*;
- (b) how the transferee proposes to provide accommodation and care for care recipients with special needs; and
- (c) if the transferee proposes to construct or develop premises to accommodate the transferred places;
 - (i) a description of the project; and
 - (ii) a detailed timetable for the project; and
 - (iii) how the transferee intends to comply with any existing conditions of allocation and any conditions that are varied as part of the application to transfer the places.

(3) The latest ~~year~~ means the financial statements of the proposed transferee's aged care services (if any) must also be included with the transfer notice ~~year starting on 1 July 1997~~.

56 Matters to be considered in deciding whether to determine different notice period

- (1) For subsection 16-13(6) of the Act, the Secretary must consider the following matters in deciding whether to determine another notice period for paragraph 16-13(4)(a) or (b) of the Act:
- (a) the reasons why the different notice period has been requested.
- (2) The Secretary may also consider any other relevant matter.

57 Matters to be considered in determining different notice period

- (1) For subsection 16-13(6) of the Act, if the Secretary has decided to determine another notice period for paragraph 16-13(4)(a) or (b) of the Act, the Secretary must consider the following matters in determining the other application period:
- (a) whether the period will be adequate to allow for the processing of the transfer notice.
- (2) The Secretary may also consider any other relevant matters.

Division 3—Consideration of transfers

58 Purpose of this Division

For paragraph 16-14(1)(j) of the Act, this Division sets out other matters that the Secretary must be satisfied of when considering a transfer notice to transfer provisionally allocated places.

59 Other matters that must be considered

(1) The Secretary must consider whether the Secretary is satisfied of the following:

- (a) that there are exceptional circumstances justifying the transfer, having regard to the residential care needs of the region; and
- (b) that the residential care needs of the region have changed since the provisional allocation of the places; and
- (c) how the development of the service, to which the provisional allocation of places was made, has progressed; and
- (d) the extent to which the care needs of the region would be better met by transferring the provisionally allocated places to the transferee than by not transferring the places..

(2) In considering the effect of the proposed transfer on future care recipients, the Secretary must take into account the following:

- (a) whether the transfer would increase or lessen the diversity of choice available to care recipients in the region, having regard to the different kinds of services available in the region;
- (b) whether the transfer will increase the likelihood of care recipients receiving continuity of care in a region;
- (d) if, after the transfer, the places would relate to the same aged care service:
 - (i) the suitability of the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, in particular whether the premises would comply with the Aged Care Quality Standards; and
 - (ii) for a transferee who owns the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, being premises that would not comply with the Aged Care Quality Standards—the failure of the transferee to have improved the premises.

Example for paragraph (2)(a):

In considering choice, kinds of services available in the region may include the following:

- (a) services that have extra service status;
- (b) ageing in place services;
- (c) service for those affected by dementia;

(d) services for people with special needs.

Example for paragraph (2)(b):

The Secretary may take into account whether the service has demonstrated its long-term ~~the 1998-99~~ financial and organisational viability.

Note: The Secretary may veto the transfer if the location for which the place is provisionally allocated will change as a result of the transfer (see paragraph 16-17(1)(d) of the Act).

(3) The Secretary may consider any other relevant matter.

Division 4—Other matters

60 Purpose of this Division

This Division specifies other matters relating to the transfer of provisionally allocated places from one person (the *transferor*) to another person (the *transferee*).

62 Information that may be given to transferee and time for giving information

Information that may be given to transferee

(1) For section 16-21 of the Act, the Secretary may give the transferee information about the following matters:

- (c) matters relating to whether the aged care service meets its accreditation requirement;
- (d) matters relating to the residential care grants (if any) made for the aged care service;
- (e) matters relating to any grants under the *Aged or Disabled Persons Care Act 1954*, or Part VAB of the *National Health Act 1953*, that have been made for the aged care service;
- (f) compliance by the transferor with the transferor's responsibilities under Chapter 4 of the Act in relation to the aged care service, including any action that has been taken or is proposed to be taken, under Part 7B of the *Quality and Safety Commission Act*, for the aged care service;
- (g) the conditions to which the places being transferred are subject;
- (h) any other matters about the transferor's aged care service of which the Secretary considers the transferee should be informed.

When information is to be given

(2) If the Secretary decides to give the transferee information under subsection (1), the Secretary must give the information to the transferee at least 28 days before the transfer day.

Note: The transfer day is the day when the transfer of a provisionally allocated place from one person to another takes effect. The day is set under section 16-19 of the Act.

(3) However, if the transferor asks the Secretary, in writing, to give the information to the transferee, the Secretary must comply with the request within 28 days after receiving it.

Part 8—Variation of conditions for allocations of places

Division 1—Applications for variation of conditions

63 Purpose of this Division

For paragraph 17-2(2)(b) of the Act, this Division specifies the information that must be included in an application to vary the conditions of an allocation of places.

64 Information that must be included in application

(1) The following information must be included in the application:

- (a) the applicant's name;
- (b) the aged care service to which the allocation relates, and its location;
- (c) the number of places to which the variation relates, and the conditions to which they are subject under Division 14 of the Act;
- (d) whether any of the places is a place included in a residential care service, or a distinct part of a residential care service, that has extra service status;
- (e) if the places are residential care places and, after the variation, the care in respect of the places would be provided at a different location:
 - (i) the address of the new location; and
 - (ii) the proposals for ensuring that care needs are appropriately met for care recipients who are being provided with care in respect of the places;
- (f) the conditions of the allocation to be varied and the proposed variation;
- (g) the proposed variation day;
- (h) if the application is made less than 60 days before the proposed variation day—the reason for this;
- (i) the applicant's assessment of the effect of the proposed variation on care recipients.

Note: Under subsection 15-1(1) of the Act, an allocation of places to an approved provider takes effect when the Secretary determines that the approved provider is in a position to provide care, in respect of those places, for which subsidy may be paid.

(2) If the application is to change the location of the allocation, and the applicant proposes to construct or develop premises to accommodate the relocated places at the new location, the following information must also be included in the application:

- (a) a description of the project;
- (b) an estimate of the total cost;
- (c) a detailed description of the site, including size, suitability, topography and any heritage issues;

Part 8 Variation of conditions for allocations of places

Part 7 Interpretation

Division 1 Applications for variation of conditions

Section 64 ~~Section 43~~

- ~~(d) the ownership arrangements of the proposed site;~~
- ~~(e) how the land around the site is being used;~~
- ~~(f) whether there are any proposals before an authority in the State or Territory concerned about the use of the site (for example, proposals to rezone the site);~~
- ~~(g) the characteristics of the neighbourhood of the site, including location of shops, and the availability of public transport and community services;~~
- ~~(h) a detailed timetable for calling tenders, planning and construction, and an indication of the applicant's ability to meet the timetable.~~

Division 2—Consideration of applications

65 Purpose of this Division

For paragraph 17-4(g) of the Act, this Division sets out other matters that the Secretary must consider in deciding whether a variation of the conditions of an allocation is justified in the circumstances.

66 Other matters to be considered

(1) If an application for a variation proposes to change the location of an allocation of places, the Secretary must consider the effect of the proposed change of location, if the application is approved, on current and future care recipients in:

- (a) the region from which the places will be transferred; and
- (b) the region to which the places will be transferred.

(2) In considering the effect of the proposed variation, the Secretary must take into account:

- (b) the extent to which, after the variation, current and future care recipients in the region in which the service operates will benefit; and
- (c) whether the variation will increase or lessen the diversity of choice available to current and future care recipients in the region, having regard to the different kinds of services available in the region; and
- (d) whether the variation will increase the likelihood of current and future care recipients receiving continuity of care in the local area within the region.

Example for paragraph (2)(b):

The Secretary may consider whether the variation would affect the provision of aged care services that meet particular needs, including the provision of the following:

- (b) services for those affected by dementia;
- (c) ageing in place services;
- (d) services for couples with differing care needs.

The Secretary may also consider the effect of the variation on the quality of services provided in the regions.

Example for paragraph (2)(c):

In considering choice, kinds of services available in the region may include the following:

- (a) services that have extra service status;
- (b) ageing in place services;
- (c) service for care recipients affected by dementia;
- (d) services for people with special needs.

Example for paragraph (2)(d):

The Secretary may take into account whether the service has demonstrated its long-term ~~year~~ means the financial and organisational viability ~~year starting on 1 July 1998.~~

Part 8 Variation of conditions for allocations of places

Part 7 Interpretation

Division 2 Consideration of applications

Section 66 ~~Section 43~~

(3) The Secretary may also consider any other relevant matter.

Part 9—Allocations ceasing to have effect

Division 1—Relinquishing places in respect of residential care subsidy

67 Purpose of this Division

This Division specifies:

- (a) for subsection 18-2(3) of the Act—the matters that must be dealt with in the proposals of an approved provider for ensuring that care needs are appropriately met for those care recipients (if any) who are being provided with residential care in respect of places that are to be relinquished by the provider; and
- (b) for subsection 18-3(2) of the Act—the matters that the Secretary must take into account in deciding whether those proposals are satisfactory.

Note: The proposals are required to be included in the notice of relinquishment given to the Secretary under subsection 18-2(1) of the Act.

68 Matters that must be dealt with by proposals

For subsection 18-2(3) of the Act, the approved provider's proposals must deal with the following matters in relation to the places that are to be relinquished:

~~the 1999–2000 financial year~~ means the financial year starting on 1 July 1999.

~~trustee~~, in relation to a superannuation fund, means:

- (a) whether the provider has notified the affected care recipients about the relinquishing of the places and, if so:
 - (i) when they were notified; and
 - (ii) whether the notification was in writing;
- (b) if the provider has met the affected care recipients to discuss the relinquishing of the places:
 - (i) when the meeting was held; and
 - (ii) whether ~~if there is~~ written evidence ~~a trustee (within the ordinary meaning of the issues discussed at the meeting; and~~
 - (iii) whether any concerns about the relinquishing ~~that expression~~ of the places were expressed to the provider by care recipients and, if so, the measures the provider proposes to take to deal with the concerns;
- (c) whether representatives of the affected care recipients have been notified about the relinquishing of the places;
- (d) whether the provider has helped the affected care recipients find suitable alternative care and accommodation of their choice;
- (e) for affected care recipients who are not able to choose premises:

Section 69 ~~Section 43~~

- (i) the measures (if any) that the provider has taken to find suitable care for them at other premises; and
- (ii) if the provider has taken such measures—whether the provider considered all aspects of the accommodation and services that the care recipients currently have, and the location of the provider’s premises, before taking the measures;
- (f) the measures that the provider proposes to take, while relinquishing the places:
 - (i) to maintain services for the affected care recipients; and
 - (ii) to provide care services to the affected care recipients who will stay at the provider’s premises;
- (g) the way (if any) in which the provider proposes to help the affected care recipients move (with their personal possessions);
- (h) the guarantees that the provider gives that the affected care recipients will not be disadvantaged, ~~fund—the trustee;~~ or discriminated against, before they move to new premises;
- (i) whether the provider is prepared to offer help to the affected care recipients that is additional to the current standard of care and other services (for example, giving the care recipient an audited statement of accounts);
- (j) the measures that the provider proposes to take to settle the accounts of the affected care recipients and refund their refundable deposit balances as required by section 52P-1 of the Act.

69 Matters that Secretary must take into account in deciding if proposals are satisfactory

- (1) For subsection 18-3(2) of the Act, the Secretary must take the following matters into account:
 - (a) whether the care recipients have been given sufficient notice, by letters, meetings or otherwise, about the relinquishing of the places and relocating;
 - (b) whether representatives of the care recipients have been notified about the relinquishing of the places and relocating;
 - (c) whether the approved provider is helping the care recipients find suitable accommodation and care that meets their assessed long-term needs and is affordable by them;
 - (d) whether the approved provider is maintaining the same standard of care and other services for the care recipients before the relocation day;
 - (e) whether the approved provider is offering help to the care recipients that is additional to the current standard of care and other services being provided to the care recipients;
 - (f) whether the approved provider has indicated that financial arrangements for the care recipients may be finalised before the time required by section 52P-1 of the Act;

[\(g\) whether the interests of care recipients in their accommodation and care will be protected;](#)

[\(h\) whether the care recipients will be unduly disadvantaged financially after relocation;](#)

[\(i\) whether the needs and expectations of the care recipients will be satisfied or improved after relocation.](#)

[\(2\) The Secretary may also take other relevant matters into account.](#)

Division 3—Revocation of unused allocations of places

73 Purpose of this Division

This Division specifies:

- (a) for subsection 18-5(1) of the Act—the period for which the allocation of a place in respect of flexible care subsidy for short-term restorative care may remain unused before being revoked; and
- (b) for paragraph 18-5(3)(b) of the Act—the matters that the Secretary must consider in deciding whether to revoke the allocation of a place to an approved provider.

73A Period after which allocation may be revoked—allocations in respect of flexible care subsidy for short-term restorative care

For subsection 18-5(1) of the Act, the Secretary may revoke the allocation of the place under that subsection if:

- (a) the allocation is in respect of flexible care subsidy for short-term restorative care; and
- (b) the approved provider to whom the place is allocated has not, for a continuous period of 6 months, provided short-term restorative care in respect of the place.

74 Matters that must be considered

(1) The Secretary must consider the following matters:

- (a) whether the decision not to use the place is temporary, and whether the approved provider intends to use the place in the near future;
- (b) why the place has not been used;
- (c) whether the place can only be operated by the approved provider because of the specialised nature of the provider's service and the place's subsidy type;
- (d) whether revoking the allocation would have detrimental effects on the community that the place is intended to service;
- (e) whether revoking the place would unduly affect the approved provider's economic viability;
- (f) whether allocating the place to another provider would better serve the interests of the community;
- (g) whether revoking the place and reallocating it is warranted;
- (h) whether any conditions of allocation under Division 14 of the Act could be varied to better serve the interests of the community;
- (i) demographic factors, including temporary movements in population, that may affect the place's viability.

[\(2\) The Secretary may also take any other relevant matter into account.](#)

Part 10—Application, saving and transitional provisions

75 Application of amendments made by the Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019

Sections 48 and 59 of these principles, as amended by the *Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019*, apply in relation to a transfer notice that is received by the Secretary on or after the day that instrument commences.

76 Application of amendments made by Schedule 3 to the Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022

(1) Section 10, as amended by Schedule 3 to the *Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022* (the *amending Schedule*), applies in relation to a determination made on or after 1 October 2022.

(2) Section 26, as amended by the *amending Schedule*, applies in relation to an invitation published on or after 1 October 2022.

(3) Section 48, as amended by the *amending Schedule*, applies in relation to a transfer notice received on or after 1 October 2022.

(4) Sections 51 and 62, as amended by the *amending Schedule*, apply in relation to information given on or after 1 October 2022.

(5) Sections 64 and 66, as amended by the *amending Schedule*, apply in relation to an application made on or after 1 October 2022.

(b) otherwise the person who manages the fund.

~~*unfunded defined benefits superannuation scheme*~~ means a superannuation scheme that is declared by the regulations to be an unfunded defined benefits superannuation scheme.

year of income means a year of income for the purposes of the Income Tax Assessment Act as that Act applies to individuals.

[Endnote 4—Amendment history](#)

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe [how an the amendment is to be made](#). If, despite the misdescription, the amendment can be given effect as intended, [then the misdescribed amendment can be incorporated through an editorial change made under section 15V into the compiled law and the abbreviation “\(md\)” added to the details of the *Legislation Act 2003* amendment included in the amendment history](#).

If a misdescribed amendment cannot be given effect as intended, the [amendment is not incorporated and abbreviation “\(md not incorp\)”](#) is added to the [details of the amendment included in the amendment history](#).

Endnotes

Endnote 2—Abbreviation key

[Endnote 4—Amendment history](#)

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) —/sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have —effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given —effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment —cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not —commenced or to be commenced

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

Endnote 3—Legislation history

Endnotes

Endnote 3—Legislation history

~~Endnote 4—Amendment history~~

Name Act	Registration Num ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
--------------------------------	---	-------------------	---

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Superannuation Contributions Tax (Assessment and Collection) Act 1997	70, 1997	5 June 1997	5 June 1997

Endnotes

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Superannuation Contributions and Termination Payments Taxes Legislation Amendment Act 1997	191, 1997	7 Dec 1997	Schedule 4 (items 1, 2, 4–50); 5 June 1997 (a) Schedule 4 (item 3); Registered: Royal Assent 23/03/2016 (a)

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Taxation Laws Amendment (Trust Loss and Other Deductions) Act 1998	17, 1998	16 Apr 1998	16 Apr 1998 S e h

Allocation Principles 2014

Compilation No.
24

Compilation date: 09/03/201610/3/16

Registered:
23/03/2016Registered:
24/3/16
t
e
m

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Taxation Laws Amendment Act (No. 3) 1999	11, 34 1999 Mar 1999	Schedule 1 (items 309– 226) 1 July 1999 (c)	—

Allocation Principles 2014

91

Endnotes

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

Name Act	Registration Num ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
A New Tax System (Fringe Benefits Reporting) Act 1999	17, 1999	19 Apr 1999	Schedule 2 — (item 14): 17 May 1999 Remainder: Royal Assent

92

Allocation Principles 2014

Compilation No.
24

Compilation date: 09/03/2016

[10/3/16](#)

[Registered:](#)
23/03/2016
[Registered:](#)
[24/3/16](#)

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
----------------	---	---------------	---

<u>Allocation Principles 2014Financial Sector</u>	<u>44, 1999</u>	<u>2547</u>	<u>1 July 2014 (s</u>	<u>3</u>
<u>Reform (Amendments and Transitional</u>		<u>June</u>	<u>2)Schedule 7</u>	<u>3(2</u>
<u>Provisions) Act (No. 1) 1999</u>		<u>2014</u>	<u>(Items 218–</u>	<u>3(e)</u>
		<u>(F201</u>	<u>220): 1 July</u>	<u>(a</u>
		<u>4L00</u>	<u>1999 (see</u>	<u>m. 93</u>
		<u>812)†</u>	<u>Gazette 1999,</u>	<u>by</u>
		<u>999</u>	<u>No. S282) (4)</u>	<u>Registered:</u>
			<u>23/03/2016</u>	<u>Registered:</u>
				<u>0,</u>
				<u>24/3/16</u>
				<u>00,</u>
				<u>Se</u>
				<u>h.</u>

Compilation No.

24

Compilation date: 09/03/2016

10/3/16

Registered:

Registered:

0,

24/3/16

00,

Se

h.

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
as amended by			

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>Name</u> <u>Act</u>	<u>Registration</u> <u>Num</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Financial Sector Legislation Amendment Act (No. 1) 2000	160, 2000	21 Dec 2000	Schedule 1 (item 21): Royal Assent
Allocation Principles 2014			Remainder: 18 Jan 2001
			95

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum	Assent	C A
	ber and year		o p
			m p
			m l
			e i
			n c
			c a
			e t
			m i
			e o
			n n
			t ,
			s
			a
			v
			i
			n
			g
			a
			n
			d
			t
			r
			a
			n
			s
			i
			t
			i
			o
			n
			a
			l
			p
			r
			o
			v
			i
			s
			i
			o
			n
			s

A New Tax System (Closely Held	70,	8 July	8 July 1999	S
Trusts) Act 1999	1999	1999		e
				h

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s	
Aged CareSuperannuation Contributions and Termination Payments Taxes	30 June 2015 (F2015L00998) 131, 1999	13 Oct	Sch Schedule 1	— Se
Legislation Amendment (Removal of Certification and Other Measures)	1999	(items 7–10):	1 July 2015 (s 2(-42): 5 June	4 (ite
Principles 2015Act 1999	Allocation Principles 2014	1997 (e) Schedule 1) 23/03/2016 item 1 (items 43–45): Royal Assent (e)	Registered: 43 Registered: 24/3/16 45)	97 ms
Compilation No.	Compilation date: 09/03/2016	10/3/16		
24				

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov	Schedule 1 — (items 892– 894); 5 Dec 1999 (see Gazette 1999, No. 8584) (16 Registered: 23/03/2016 Registered: 24/3/16

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
<i>A New Tax System (Tax Administration) Act 1999</i>	179, 1999	22 Dec	Schedule 2 (items 70–72, 130, 132); (8)
<i>Allocation Principles 2014</i>			99

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
<u>A New Tax System (Tax</u> <u>Administration) Act (No. 1) 2000</u>	<u>44,</u> <u>2000</u>	<u>3 May</u> <u>2000</u>	<u>Schedule 3</u> <u>(item 51): (b)</u>

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>Name</u> <u>Act</u>	<u>Registration</u> <u>Num</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
<u>A New Tax System (Tax Administration) Act (No. 2) 2000</u>	<u>91,</u> <u>2000</u> <u>2000</u>	<u>30 Ju</u> <u>ne</u> <u>60)</u>	<u>Schedule 2</u> <u>(items 57–</u> <u>60)–(i)</u>

Allocation Principles 2014

101

Endnotes

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
-------------------------	--	------------------------	---

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Family Law Legislation Amendment (Superannuation) (Consequential Provisions) Act 2001	114, 2001	18 Sept 2001	Sch 1 (items 26– 22); 28 Dec 2002 (s 2)

Allocation Principles 2014

103

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Superannuation (Government Co-contribution for Low Income Earners) (Consequential Amendments) Act 2003	111, 2003	12 Nov	Sch 1 (items 18, 19, 25); 12 Nov
Allocation Principles 2014			2003 (s 2(1) item 4)

104

Compilation No.
24

Compilation date: 09/03/201610/3/16

Registered:
23/03/2016Registered:
24/3/16

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
<u>Allocation PrinciplesTaxation Laws</u>	<u>12 May 2016 (F2016L00779)</u>	<u>142, 2003</u>	<u>17</u>
<u>Amendment Principle 2016Act (No. 5)</u>	<u>Dee</u>	<u>2016Seh 6</u>	<u>Se</u>
<u>2003</u>	<u>2003</u>	<u>(items 9–15,</u>	<u>h 6</u>
		<u>21); 17 Dee</u>	<u>(ite</u>
		<u>2003 (s. 2(1)</u>	<u>m 105</u>
		<u>item 18)</u>	<u>21)</u>
Compilation No.	Compilation date: 09/03/2016	10/3/16	Registered: 23/03/2016Registered: 24/3/16
24			

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

Name Act	Registration Num ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s	
Aged Care Legislation Taxation Laws	23 Sept 2016 (F2016L01492) 101, 2004	30 Ju	Sch 1-11 (items 8-25):	= Se
Amendment (Increasing Consumer Choice)	ne	2004	27 Feb	h
Principles 2016 Act (No. 1) 2004			201736, 37):	11
106	Allocation Principles 2014		30 June 2000	(ite
Compilation No.	Compilation date: 09/03/2016	10/3/16	(s 2(1) item 312) 23/03/2016 Sch 11 (items 90-95): 1 July 2000 (s 2(1) item 14)	ms- 37: Registered: 91: 24/3/16 95)
24				

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>Name</u> <u>Act</u>	<u>Registration</u> <u>Num</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Superannuation Laws Amendment (Abolition of Surcharge) Act 2005	102, 2005	12 Aug 2005	Sch 1 (items 1, 8— 15); 12 Aug 2005 (s 2)

Allocation Principles 2014

107

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
<u>Tax Laws Amendment (2006</u> <u>Measures No. 2) Act 2006</u>	<u>58,</u> <u>2006</u> <u>2006</u>	<u>22 Ju</u> <u>ne</u> <u>2006</u>	<u>Sch 7</u> <u>(items 264,</u> <u>265); 22 June</u> <u>2006 (s 2(1)</u> <u>item 24)</u>

108

Allocation Principles 2014

Compilation No.
24

Compilation date: 09/03/201610/3/16

Registered:
23/03/2016Registered:
24/3/16

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>Name</u>	<u>Act</u>	<u>Registration Number and year</u>	<u>Assent</u>	<u>C</u>	<u>A</u>
				o	p
				m	p
				m	l
				e	i
				n	c
				c	a
				e	t
				m	i
				e	o
				n	n
				t	,
				s	
				a	
				v	
				i	
				n	
				g	
				a	
				n	
				d	
				t	
				r	
				a	
				n	
				s	
				i	
				t	
				i	
				o	
				n	
				a	
				l	
				p	
				r	
				o	
				v	
				i	
				s	
				i	
				o	
				n	
				s	
<u>Aged Care Legislation</u>	<u>Tax Laws</u>	<u>3 Apr 2019 (F2019L00515)</u>	<u>101, 2006</u>	<u>14</u>	<u>Sch 1-2</u>
<u>Amendment (Single Quality Framework</u>		<u>Sept</u>	<u>(items 42-48):</u>	<u>Se</u>	
<u>Consequential Amendments and</u>		<u>2006</u>	<u>1 July</u>	<u>4-6</u>	
<u>Transitional</u>	<u>Repeal of Inoperative</u>		<u>2019-017,</u>	<u>(ite</u>	
<u>Provisions)</u>	<u>Instrument 2019-Act-2006</u>	<u>Allocation Principles 2014</u>	<u>1046-1050)</u>	<u>ms</u>	<u>109</u>
Compilation No.	Compilation date: 09/03/2016	<u>10/3/16</u>	<u>and Sch 6</u>	<u>Registered:</u>	
24			<u>(item 1-6</u>	<u>6-</u>	
			<u>23/03/2016</u>	<u>Registered:</u>	
			<u>11): 14 Sept</u>	<u>11)</u>	
			<u>2006 (s 2(1</u>	<u>24/3/16</u>	
			<u>item 1</u>	<u>items 2,</u>	
			<u>4)</u>		

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum	Assent	C A
	ber and year		o p
			m p
			m l
			e i
			n c
			c a
			e t
			m i
			e o
			n n
			t ,
			s
			a
			v
			i
			n
			g
			a
			n
			d
			t
			r
			a
			n
			s
			i
			t
			i
			o
			n
			a
			l
			p
			r
			o
			v
			i
			s
			i
			o
			n
			s

	Superannuation Legislation	15,	15	Sch 1	S
	Amendment (Simplification) Act	2007	Mar	(items 328–	e
	2007	2007	230, 406(1)–	b	
			(3)); 15 Mar		
			2007 (s 2(1)	+	
			item 2)	Registered:	
			23/03/2016	Registered:	
			24/3/16	Registered:	
			e	m	
			-	4	

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Tax Laws Amendment (Confidentiality of Taxpayer Information) Act 2010	145, 2010	16 Dec 2010	Sch 2 (items 70, 71); 17 Dec 2010 (s 2(1) item 2)
Allocation Principles 2014			111

Endnotes

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Tax Laws Amendment (2011 Measures No. 2) Act 2011	41, 2011	27 Ju ne 2011	Sch 5 (item 399); 27 June 2011 (s 2(1) item 23)

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Aged CareTreasury Legislation	23 Dec 2019 (F2019L01696)	2, 2015	25
Amendment (New Commissioner Functions) Instrument 2019	Feb 2015	1 (item 37): 1	h-2
Act 2015	Jan 2020–July 2015	(s 2(1))	72)
	Allocation Principles 2014	23/03/2016	Registered: 24/3/16
Compilation No.	Compilation date: 09/03/2016	10/3/16	Registered: 24/3/16
24			

Endnotes

Endnote 3—Legislation history

Endnote 4—Amendment history

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
as amended by			

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>Name</u> <u>Act</u>	<u>Registration</u> <u>Num</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Tax and Superannuation Laws Amendment (2015 Measures No. 1) Act 2015	70, 2015	25 Ju ne	Sch 6 (item 64): 25 Feb 2015 (s 2(1) item 18)

Allocation Principles 2014

115

Endnotes

Endnote 3—Legislation history

[Endnote 4—Amendment history](#)

NameAct	RegistrationNum ber and year	Assent	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Aged CareNorfolk Island Legislation Amendment (Residential Aged Care Funding) Instrument 2022Act 2015	29 Sept 2022 (F2022L01276)59, 2015	26 Ma y 2015	Sch 3 (items 10–202 (item 338): 1 Oct 2022–July 2016: (s 2(1) item 5) Sch 2 23/03/2016Registered: (items 356– 396): 18 June 2015 (s 2(1) item 6)
116	Allocation Principles 2014		— Se h 2 (ite ms- 25 Registered: 6– 39 24/3/16 6)
Compilation No. 24	Compilation date: 09/03/201610/3/16		

Endnote 3—Legislation history

Endnote 4—Amendment history

<u>NameAct</u>	<u>RegistrationNum</u> <u>ber and year</u>	<u>Assent</u>	C A o p m p m l e i n c c a e t m i e o n n t , s a v i n g a n d t r a n s i t i o n a l p r o v i s i o n s
Statute Law Revision Act (No. 1) 2016	4, 2016	11 Feb 2016	Sch 4 (items 1, 2016 (s 2(1) item 6)
Allocation Principles 2014			117

Endnote 3—Legislation history

Endnote 4—Amendment history

- (a) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 4 (items 1–50) only of the *Superannuation Contributions and Termination Payments Taxes Legislation Amendment Act 1997*, subsections 2(1) and (3) of which provide as follows:~~
- ~~(1) Subject to this section, this Act commences on the day on which it receives the Royal Assent.~~
 - ~~(3) Items 1 and 2, and 4 to 50, of Schedule 4 are taken to have commenced on 5 June 1997, immediately after the commencement of the *Superannuation Contributions Tax (Assessment and Collection) Act 1997*.~~
- (b) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 1 (item 182) only of the *Financial Sector Reform (Consequential Amendments) Act 1998*, subsection 2(2) of which provides as follows:~~
- ~~(2) Subject to subsections (3) to (14), Schedules 1, 2 and 3 commence on the commencement of the *Australian Prudential Regulation Authority Act 1998*.~~
- (c) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 1 (items 309–326) only of the *Taxation Laws Amendment Act (No. 3) 1999*, subsection 2(3) of which provides as follows:~~
- ~~(3) Subject to subsections (4) and (5), Schedule 1 commences on 1 July 1999.~~
- (d) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 7 (items 218–220) only of the *Financial Sector Reform (Amendments and Transitional Provisions) Act (No. 1) 1999*, subsections 3(2)(e) and (16) of which provide as follows:~~
- ~~(2) The following provisions commence on the transfer date:~~
 - ~~(e) subject to subsection (12), Schedule 7, other than items 43, 44, 118, 205 and 207 (the commencement of those items is covered by subsections (10), (11) and (13)).~~
 - ~~(16) The Governor-General may, by Proclamation published in the *Gazette*, specify the date that is to be the transfer date for the purposes of this Act.~~
- (e) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 1 (items 1–42) only of the *Superannuation Contributions and Termination Payments Taxes Legislation Amendment Act 1999*, subsections 2(1) and (2) of which provide as follows:~~
- ~~(1) Subject to this section, this Act commences on the day on which it receives the Royal Assent.~~
 - ~~(2) Schedule 1 (other than items 43 to 45) is taken to have commenced on 5 June 1997.~~
- (f) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 1 (items 892–894) only of the *Public Employment (Consequential and Transitional) Amendment Act 1999*, subsections 2(1) and (2) of which provide as follows:~~
- ~~(1) In this Act, **commencing time** means the time when the *Public Service Act 1999* commences.~~
 - ~~(2) Subject to this section, this Act commences at the commencing time.~~
- (g) ~~The *Superannuation Contributions Tax (Assessment and Collection) Act 1997* was amended by Schedule 2 (items 70–72) only of the *A New Tax System (Tax Administration) Act 1999*, subsection 2(1) of which provides as follows:~~
- ~~(1) Subject to this section, this Act commences, or is taken to have commenced, immediately after the commencement of section 1 of the *A New Tax System (Pay As You Go) Act 1999*.~~

Endnote 3—Legislation history

Endnote 4—Amendment history

-
- Section 1 commenced on 22 December 1999.
- (h) ~~The Superannuation Contributions Tax (Assessment and Collection) Act 1997 was amended by Schedule 3 (item 51) only of the A New Tax System (Tax Administration) Act (No. 1) 2000, subsection 2(1) of which provides as follows:~~
-
- ~~(1) Subject to this section, this Act commences, or is taken to have commenced, immediately after the commencement of section 1 of the A New Tax System (Tax Administration) Act 1999.~~
-
- Section 1 commenced on 22 December 1999.
- (i) ~~The Superannuation Contributions Tax (Assessment and Collection) Act 1997 was amended by Schedule 2 (items 57–60) only of the A New Tax System (Tax Administration) Act (No. 2) 2000, subsection 3(1) of which provides as follows:~~
-
- ~~(1) Subject to this section, this Act commences, or is taken to have commenced, immediately after the commencement of section 1 1 of the A New Tax System (Goods and Services Tax) Act 1999.~~
-
- ~~Section 1 1 of the A New Tax System (Goods and Services Tax) Act 1999 commenced on 1 July 2000.~~

Endnotes

Endnote 4—Amendment history

[Endnote 4—Amendment history](#)

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 23	rep LIA s 48 am No 59, 2015
s 4-6	am F2016L00670; F2016L00779; F2019L00515 am. No. 191, 1997; No. 11, 1999 rs. No. 131, 1999 am. No. 102, 2005
Part 2	
Division 1	rep F2016L00779
s 7	rep F2016L00779 am. No. 191, 1997; No. 102, 2005
ss 7A, 7B	ad. No. 96, 2001 am. No. 142, 2003; No. 41, 2011
s 8	rep F2016L00779 am. No. 191, 1997; No. 131, 1999; No. 96, 2001; Nos. 111 and 142, 2003
s 8A	ad. No. 131, 1999 am. No. 114, 2001
s 9	am. No. 102, 2005
Subhead. to s. 10(3)	am. No. 191, 1997
s 10	am F2016L01492; F2022L01276 am. No. 131, 1999; No. 114, 2001
s 10A	ed C7 ad. No. 114, 2001
Division 2 heading	s. rep F2016L00779 am. No. 131, 1999
Part 3	
s 12	Subhead. rep F2016L00779 rs. No. 191, 1997
Subhead. to s. 13(4)	rs. No. 191, 1997
s 13	rep F2016L00779 am. No. 191, 1997; No. 131, 1999; No. 96, 2001; No. 102, 2005; No 4, 2016
s 14	rep F2016L00779 am. No. 191, 1997; No. 58, 2006; No 4, 2016
s 14A	ad. No. 191, 1997 am. No. 102, 2005
s 15	rep F2016L00779 am. No. 131, 1999; No. 102, 2005
Note to s. 15(4)	ad. No. 44, 2000
s 15A	ad. No 131, 1999 am. No 102, 2005
s 15B	ad. No 131, 1999 am. No 102, 2005; No 4, 2016
s 16	rep F2016L00779 am. No 191, 1997; No 114, 2001; No 15, 2007; No 4, 2016
s 17	rep F2016L00779 am. No. 191, 1997
s 18-17A	rep F2016L00779 ad. No. 131, 1999
s 19	rep F2016L00779

Endnote 4—Amendment history

Endnote 4—Amendment history

s ss-18-20	rep F2016L00779 am. No. 191, 1997; No. 131, 1999
Heading to s- 21	rep F2016L00779 am. No. 11, 1999
s- 21	am. No. 11, 1999
Note to s- 21(1)	am. No. 101, 2006
s- 22	rep F2016L00779 rs. No. 11, 1999
Note to s- 23-22	rep F2016L00779 am. No. 101, 2006
s- 24	rep F2016L00779 am. No. 191, 1997; No. 131, 1999
Part 4	
Heading to Part 4	rs. No. 11, 1999
s- 25	am. No. 191, 1997; No. 11, 1999
Division 1 Note to s- 25(1)	am. No. 101, 2006
s- 25A	ad. No. 11, 1999
Note to s- 25A(2)	am. No. 101, 2006
s- 26	am F2016L01492; F2022L01276 am. No. 11, 1999 ed C7 rep. No. 179, 1999
Division 2 Heading to s- 27	am. No. 11, 1999 rep. No. 179, 1999
s- 27	am F2016L00670 am. No. 11, 1999
s- 28	am F2016L00670; F2016L01492 rep. No. 179, 1999
ss- 28; 29	am F2016L00670; F2016L01492 rep. No. 11, 1999
Part 5	
Note to s- 30	am F2016L00670; F2016L01492 ad. No. 145, 2010
s- 31	Subhead: am F2016L00670; F2016L01492 am. No. 48, 1998
Division 3	rep. No. 145, 2010
s- 32	rep F2022L01276 am. No. 48, 1998; No. 146, 1999
s- 33	am F2022L01276 rep. No. 145, 2010
Note to s- 34-32(2)	rep F2022L01276 rs. No. 191, 1997 rep. No. 145, 2010
Note to s- 32(8)	ad. No. 191, 1997 rep. No. 145, 2010
Part 56	
s- 34A	ad. No. 191, 1997
s- 35	rs. No. 191, 1997
s- 35A	ad. No. 191, 1997
Renumbered s- 35B	No. 131, 1999
s- 35A	ad. No. 191, 1997 am. No. 131, 1999; No. 91, 2000
s- 36	am. No. 191, 1997; No. 146, 1999

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Division 2

~~rep No 2, 2015~~

s 37 am ~~F2016L00779~~, No. 11, 1999

~~ed C3~~~~rep No 2, 2015~~

s 38 rs ~~F2016L00779~~am. No. 91, 2000

~~am F2016L00779~~~~rep No 2, 2015~~

s 39 rep ~~F2016L00779~~No 2, 2015

s 40 rep ~~F2016L00779~~am No 191, 1997; No 4, 2016

Part 6s 40A ad. No. 191, 1997

Division 2

~~am. No. 44, 1999~~

Division 2 heading rs ~~F2016L00779~~rep. No. 179, 1999

s 42 am ~~F2016L00779~~rs. No. 191, 1997

s 43 am ~~F2016L00779~~, No. 131, 1999

s 44 am ~~F2016L00779~~

~~ed C3~~

~~rep F2016L01492~~

s 45 am ~~F2016L00779~~

s 46 am ~~F2016L00779~~

Division 3

Division 3 heading rs ~~F2016L00779~~

s 47 am ~~F2016L00779~~

~~ed C3~~

s 48 am ~~F2015L00998; F2016L00779; F2016L01492; F2019L00515; F2022L01276~~

Division 4

s 50 rep ~~F2016L00779~~

s 51 am ~~F2015L00998; F2016L00779; F2019L01696; F2022L01276~~

s 52 am ~~F2016L00779~~

Part 7

Division 2

Division 2 heading rs ~~F2016L00779~~

s 54 am ~~F2016L00779~~

s 55 am ~~F2016L00779~~

s 56 am ~~F2016L00779~~

~~ed C3~~

s 57 am ~~F2016L00779~~

Division 3

Division 3 heading rs ~~F2016L00779~~

s 58 am ~~F2016L00779~~

~~ed C3~~

s 59 am ~~F2015L00998; F2016L00779; F2019L00515~~

Endnote 4—Amendment history

Endnote 4—Amendment historyDivision 4

s 61 [rep F2016L00779](#)

s 62 [am F2015L00998; F2019L01696; F2022L01276](#)

Part 8Division 1

s 64 [am F2016L01492; F2022L01276](#)

Division 2

s 66 [am F2016L01492; F2022L01276](#)

Part 9

Division 2..... [rep F2016L01492](#)

s 70 [rep F2016L01492](#)

s 71 [rep F2016L01492](#)

s 72 [rep F2016L01492](#)

Division 3

s 73 [rs F2016L00670](#)

s 73A [ad F2016L00670](#)

Part 10

Part 10s. 43..... [rep 30 June 2015 \(s 76\)am. No. 191, 1997; No. 17, 1998; Nos. 11, 17, 70, 131 and 146, 1999; Nos. 96 and 114, 2001; No. 142, 2003; No. 101, 2004; No. 101, 2006; No. 15, 2007; No 2, 2015](#)

[ad F2019L00515](#)

s 75 [rep 30 June 2015 \(s 76\)](#)

[ad F2019L00515](#)

s 76 [rep 30 June 2015 \(s 76\)](#)

[ad F2022L01276](#)

Endnotes

Endnote 5—Editorial changes

[Endnote 4—Amendment history](#)

[Endnote 5—Editorial changes](#)

[In preparing this compilation for registration, the following kinds of editorial change\(s\) were made under the *Legislation Act 2003*.](#)

[Paragraphs 10\(c\) and 26\(c\)](#)

[Kind of editorial change](#)

[Changes to punctuation](#)

[Details of editorial change](#)

[Schedule 3 item 10 of the *Aged Care Legislation Amendment \(Residential Aged Care Funding\) Instrument 2022* instructs to repeal paragraphs 10\(d\) and 26\(d\).](#)

[The repeal of paragraphs 10\(d\) and 26\(d\) results in paragraphs 10\(c\) and 26\(c\) ending with a semicolon despite being the last paragraph of those sections.](#)

[This compilation was editorially changed by omitting the semicolon and inserting a full stop at the end of paragraphs 10\(c\) and 26\(c\) to correct the punctuation.](#)